

Authorised Version No. 172

Sale of Land Act 1962

No. 6975 of 1962

Authorised Version incorporating amendments as at
25 November 2025

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Authorised Version No. 172

Sale of Land Act 1962

No. 6975 of 1962

Authorised Version incorporating amendments as at
25 November 2025

An Act to make Provision with respect to the Sale of Land, to amend the **Local Government Act 1958**, the **Transfer of Land Act 1958**, the **Town and Country Planning Act 1961**, and for other purposes.

BE IT ENACTED by the Queen's Most Excellent Majesty by and with the advice and consent of the Legislative Council and the Legislative Assembly of Victoria in this present Parliament assembled and by the authority of the same as follows (that is to say):

1 Short title and commencement

- (1) This Act may be cited as the **Sale of Land Act 1962**.
- (2) This Act shall come into force on a day to be fixed by proclamation of the Governor in Council published in the Government Gazette and any such proclamation may fix different days for the coming into operation of different sections of the Act.

* * * * *

S. 1(3)
amended by
Nos 9423
s. 2(1), 9858
s. 4(1),
repealed by
No. 48/1991
s. 56(1).

2 Definitions

- (1) In this Act unless inconsistent with the context or subject-matter—

S. 2(1) def. of
*agricultural
land*
inserted by
No. 14/2019
s. 4(2).

agricultural land means land used primarily for agricultural or pastoral purposes, regardless of whether the land is also used for commercial or residential purposes;

arbitrator means a person appointed by the Governor in Council to be an arbitrator for the purposes of this Act;

S. 2(1) def. of
*Australian
financial
services
licence*
inserted by
No. 14/2019
s. 4(2).

Australian financial services licence has the same meaning as in Chapter 7 of the Corporations Act;

S. 2(1) def. of
*authorised
deposit-taking
institution*
inserted by
No. 11/2001
s. 3(Sch.
item 67.1(a)).

authorised deposit-taking institution has the same meaning as in the Banking Act 1959 of the Commonwealth;

S. 2(1) def. of
child
inserted by
No. 27/2001
s. 3(Sch. 1
item 12.1).

child of a person includes a child of the person's spouse or domestic partner;

S. 2(1) def. of
conveyancer
inserted by
No. 75/2006
s. 192(Sch. 2
item 5.1).

conveyancer means a licensee under the **Conveyancers Act 2006**;

domestic partner of a person means—

- (a) a person who is in a registered relationship with the person; or
- (b) a person to whom the person is not married but with whom the person is living as a couple on a genuine domestic basis (irrespective of gender);

S. 2(1) def. of ***domestic partner*** inserted by No. 27/2001 s. 3(Sch. 1 item 12.1), substituted by No. 12/2008 s. 73(1)(Sch. 1 item 54.1).

estate agent has the same meaning as in the **Estate Agents Act 1980**;

S. 2(1) def. of ***estate agent*** inserted by No. 14/2019 s. 4(2).

financial product has the same meaning as in Chapter 7 of the Corporations Act;

S. 2(1) def. of ***financial product*** inserted by No. 14/2019 s. 4(2).

GST has the same meaning as in the A New Tax System (Goods and Services Tax) Act 1999 of the Commonwealth;

S. 2(1) def. of ***GST*** inserted by No. 50/2024 s. 46.

land includes land of any tenure, and buildings or parts of buildings (whether the division is horizontal, vertical or made in any other way) and other corporeal hereditaments; and also an undivided share in land and any estate or interest in land;

land banking scheme means a scheme for the proposed development of land by the subdivision of that land, under which—

S. 2(1) def. of ***land banking scheme*** inserted by No. 14/2019 s. 4(2).

- (a) members contribute money or money's worth as consideration to acquire rights to benefits produced by the scheme, whether the rights are actual, prospective or contingent, and regardless of whether the rights are enforceable; and

- (b) members (other than the scheme's proponent) do not have day-to-day control or oversight of the operation of the scheme, regardless of whether they have the right to be consulted or to give directions; and
- (c) members (other than the scheme's proponent) do not have a proprietary interest in a material part of, or all of, the land that is the subject of the proposed development—

but does not include the development of land under an off-the-plan contract;

S. 2(1) def. of *legal practitioner* inserted by No. 18/2005 s. 18(Sch. 1 item 94.1), amended by No. 17/2014 s. 160(Sch. 2 item 87).

legal practitioner means an Australian legal practitioner;

S. 2(1) def. of *licensed estate agent* inserted by No. 14/2019 s. 4(2).

licensed estate agent has the same meaning as in the **Estate Agents Act 1980**;

S. 2(1) def. of *mortgage* amended by Nos 7052 s. 2(a), 7272 s. 2(1)(a).

mortgage includes any charge or lien on any land for securing money or money's worth but does not include any such charge or lien which attaches to any land by the operation of any enactment to secure an amount due for rates taxes or charges payable to any statutory body or any such charge or lien in favour of a service company to secure the performance by the proprietor of a stratum estate of his obligations to the service company under a service agreement or any

floating charge on the whole or any part of the undertaking or property of a corporation and the verb *to mortgage* shall have a corresponding interpretation; *mortgage money* means money or money's worth secured by a mortgage; *mortgagor* includes any person from time to time deriving title under the original mortgagor or entitled to redeem a mortgage according to his estate interest or right in the mortgaged property; *mortgagee* includes any person at any time deriving title under the original mortgagee;

occupancy permit means an occupancy permit issued under Part 5 of the **Building Act 1993**;

S. 2(1) def. of *occupancy permit* inserted by No. 14/2019 s. 4(1).

off-the-plan contract means a contract for the sale of a lot on a plan of subdivision (whether the plan is certified or not) where the plan has not been registered under section 22 of the **Subdivision Act 1988**;

S. 2(1) def. of *off-the-plan contract* inserted by No. 14/2019 s. 4(1).

Part means Part of this Act;

police officer has the same meaning as in the **Victoria Police Act 2013**;

S. 2(1) def. of *police officer* inserted by No. 37/2014 s. 10(Sch. item 148.1).

prescribed means prescribed by or under this Act;

purchaser includes any person from time to time deriving an interest under a contract of sale from the original purchaser under the contract;

S. 2(1) def. of
*registered
managed
investment
scheme*
inserted by
No. 14/2019
s. 4(2).

registered managed investment scheme
means a scheme registered by ASIC under
section 601EB of the Corporations Act;

regulations means regulations under this Act;

Registrar means the Registrar of Titles;

S. 2(1) def. of
*rent-to-buy
arrangement*
inserted by
No. 14/2019
s. 4(2).

rent-to-buy arrangement means an arrangement
that involves a person entering into one or
more contracts that provide for—

- (a) a right of, or obligation on, that person
to purchase residential land; and
- (b) payment of rent or any other amount
by that person in respect of a period of
occupation of the residential land for
more than 6 months before the right to
purchase that land may be exercised or
the purchase of the land completed;

S. 2(1) def. of
*residential
land*
inserted by
No. 14/2019
s. 4(2).

residential land means land that is used or
intended to be used for residential purposes;

S. 2(1) def. of
*residential off-
the-plan
contract*
inserted by
No. 14/2019
s. 4(1).

residential off-the-plan contract means an
off-the-plan contract where the lot is
proposed to be used for residential
purposes;

rules means rules under this Act;

S. 2(1) def. of
sale
amended by
No. 7272
s. 2(1)(b).

sale includes an agreement for sale an offer to sell
and the giving of an option to purchase; and
sell and ***sells*** shall have corresponding
interpretations;

Schedule means Schedule to this Act;

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S. 2(1) def. of *society* inserted by No. 35/1996 s. 453(Sch. 1 item 73.1), repealed by No. 11/2001 s. 3(Sch. item 67.1(b)).

spouse of a person means a person to whom the person is married;

S. 2(1) def. of *spouse* inserted by No. 27/2001 s. 3(Sch. 1 item 12.1).

sunset clause means a provision of a residential off-the-plan contract that provides for the contract to be rescinded if—

S. 2(1) def. of *sunset clause* inserted by No. 14/2019 s. 4(1).

- (a) the relevant plan of subdivision in respect of the lot has not been registered by the sunset date; or
- (b) an occupancy permit has not been issued in respect of the lot by the sunset date;

sunset date means a date that is—

S. 2(1) def. of *sunset date* inserted by No. 14/2019 s. 4(1).

- (a) specified in a residential off-the-plan contract as the latest date by which the relevant plan of subdivision must be registered or the occupancy permit must be issued; or
- (b) an extension of the date referred to in paragraph (a) that is determined in accordance with the terms of the contract;

S. 2(1) def. of
terms
contract
substituted by
No. 6/2008
s. 29(1).

terms contract has the meaning set out in
section 29A;

vendor includes any person to whom the rights of
a vendor under a contract have been
assigned.

S. 2(1A)
inserted by
No. 27/2001
s. 3(Sch. 1
item 12.2),
substituted by
No. 12/2008
s. 73(1)(Sch. 1
item 54.2).

(1A) For the purposes of the definition of *domestic
partner* in subsection (1)—

(a) *registered relationship* has the same
meaning as in the **Relationships Act 2008**;
and

(b) in determining whether persons who are
not in a registered relationship are domestic
partners of each other, all the circumstances
of their relationship are to be taken into
account, including any one or more of the
matters referred to in section 35(2) of the
Relationships Act 2008 as may be relevant
in a particular case.

S. 2(2)
amended by
No. 7898
s. 3(a),
substituted by
No. 53/1988
s. 45(Sch. 2
item 39) (as
amended by
No. 47/1989
s. 19(y)).

(2) This Act does not bind the Crown but applies to
any statutory body or authority (whether or not it
represents the Crown) in respect of any
subdivision of land.

S. 2(3)
repealed by
No. 6/2008
s. 29(2).

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**S. 2(4)
inserted by
No. 7052
s. 2(b),
repealed by
No. 6/2008
s. 29(2).**

Part I—Sale of land

Division 1—General provisions relating to the sale and subdivision of land

S. 3 amended by Nos 7052 s. 2(c), 7272 s. 2(2), 17/1999 s. 45, repealed by No. 6/2008 s. 30.	*	*	*	*	*
S. 4 amended by Nos 7052 s. 2(d), 9554 s. 2(2)(Sch. 2 item 288), 85/1998 s. 24(Sch. item 53), repealed by No. 6/2008 s. 30.	*	*	*	*	*
S. 5 amended by No. 53/1988 s. 45(Sch. 3 item 67) (as amended by No. 47/1989 s. 23(2)), repealed by No. 6/2008 s. 30.	*	*	*	*	*

Sale of Land Act 1962
No. 6975 of 1962
Part I—Sale of land

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*	*	*	*	*

S. 6
amended by
Nos 7052
s. 2(e), 9554
s. 2(2)(Sch. 2
item 288),
42/1989
s. 4(a),
18/2005
s. 18(Sch. 1
item 94.2),
75/2006
s. 192(Sch. 2
item 5.2),
repealed by
No. 6/2008
s. 30.

S. 7
amended by
Nos 7052
s. 2(f), 7272
s. 3, 9554
s. 2(2)(Sch. 2
item 288),
repealed by
No. 6/2008
s. 30.

8 Apportionment of mortgage moneys where land subdivided

- (1) Where any land which is subject to a mortgage is or has been subdivided into separate lots or parcels the mortgagor may require the mortgagee to apportion the mortgage moneys to the respective lots or parcels of land which are subject to the mortgage.
- (2) If the mortgagee fails to apportion the mortgage moneys to the respective lots or parcels or if the mortgagor is dissatisfied with the proposed apportionment the mortgagor may apply to an arbitrator for a determination as to the amount to be apportioned to each such lot or parcel.

S. 8(1)
amended by
No. 53/1988
s. 45(Sch. 2
item 40).

S. 8(2)
amended by
No. 53/1988
s. 45(Sch. 2
items 40, 41).

S. 8(3)
amended by
No. 53/1988
s. 45(Sch. 2
item 40).

- (3) Where the mortgage moneys have been apportioned to the respective lots or parcels pursuant to this section the mortgagee shall on tender of—

S. 8(3)(a)
amended by
No. 53/1988
s. 45(Sch. 2
item 41).

- (a) the amount apportioned to any particular lot or parcel; or

S. 8(3)(b)
amended by
No. 53/1988
s. 45(Sch. 2
item 41).

- (b) a registrable instrument of mortgage to secure payment of all moneys apportioned to that lot or parcel—

execute and deliver to the mortgagor a discharge of the first-mentioned mortgage in so far as it relates to that lot or parcel.

- (4) A mortgage tendered under this section shall contain all such powers in favour of the mortgagee and all such covenants on the part of the mortgagor as are usual in mortgages and shall fully accord with and provide for the observance of all obligations of the mortgagor pursuant to the mortgage to be discharged and shall be prepared and registered at the cost of the mortgagor.
- (5) Any question as to the sufficiency of any instrument of mortgage tendered pursuant to this section shall in the absence of agreement between the parties be determined by an arbitrator.

S. 8A
inserted by
No. 7898 s. 2,
substituted by
No. 53/1988
s. 45(Sch. 2
item 42) (as
amended by
No. 47/1989
s. 18(1)(m)
(i)–(vii)),
amended by
No. 48/1991
s. 53(1).

8A Land which can be disposed of without being subdivided

- (1) The following land can be dealt with without being subdivided—
- (a) any land under the operation of the **Transfer of Land Act 1958** which is—

- | | |
|--|---|
| (i) a lot on a plan of subdivision certified or registered under the Subdivision Act 1988 and which is not the subject of a later registered plan; or | S. 8A(1)(a)(i) amended by No. 48/1991 s. 53(2)(a). |
| (ii) an allotment on the latest Crown plan for disposal in fee simple of Crown land which is not the subject of a later registered plan; or | S. 8A(1)(a)(ii) amended by No. 48/1991 s. 53(2)(b). |
| (iii) an allotment on a plan of subdivision approved by the Registrar under section 97 of the Transfer of Land Act 1958 or on any map or plan deposited or lodged under section 97 of the Transfer of Land Act 1954 or a corresponding previous or subsequent enactment, which is not the subject of a later registered plan; or | S. 8A(1)(a)(iii) amended by No. 48/1991 s. 53(2)(c). |
| (iv) a lot on a registered plan of strata subdivision, subject to any restriction on the plan, which is not the subject of a later registered plan; or | S. 8A(1)(a)(iv) substituted by No. 48/1991 s. 53(2)(d). |
| (v) a lot on a registered cluster plan, subject to any restriction on the plan, which is not the subject of a later registered plan; or | S. 8A(1)(a)(v) substituted by No. 48/1991 s. 53(2)(d). |
| (vi) a parcel of land for which a declaration has been given under section 569D(3A) of the Local Government Act 1958 if the registration of any instrument or dealing to which the declaration relates occurs within 5 years of the commencement of section 44 of the Subdivision Act 1988 ; or | |

S. 8A(1)(a)(vii)
amended by
No. 48/1991
ss 53(2)(e), 57.

(vii) the whole of the land in a folio of the Register under the **Transfer of Land Act 1958** which is not the subject of a later registered plan; or

S. 8A(1)(a)(viii)
substituted by
No. 48/1991
s. 53(2)(f).

(viii) a separate parcel of land or a separate part of a parcel of land if the parcel or part existed and could be sold separately prior to the commencement of section 44 of the **Subdivision Act 1988** (whether the land is disposed of before or after that commencement); or

S. 8A(1)(a)(ix)
repealed by
No. 48/1991
s. 53(2)(g).

* * * * *

(b) any land not under the **Transfer of Land Act 1958** which is—

S. 8A(1)(b)(i)
substituted by
No. 48/1991
s. 53(3)(a).

(i) an allotment on the latest Crown plan for disposal in fee simple of Crown land which is not the subject of a later plan of subdivision sealed under section 569B of the **Local Government Act 1958**; or

S. 8A(1)(b)(ii)
amended by
No. 48/1991
s. 53(3)(b).

(ii) a parcel of land or a separate part of a parcel of land granted by a conveyance dated more than 15 years before the commencement of section 44 of the **Subdivision Act 1988**; or

S. 8A(1)(b)(iia)
inserted by
No. 48/1991
s. 53(3)(c).

(iia) a separate parcel of land or a separate part of a parcel of land granted by a conveyance dated 15 or less than 15 years before the commencement of section 44 of the **Subdivision Act 1988** and which lawfully subdivided the land; or

- (iii) a parcel of land on a plan of subdivision sealed under section 569B of the **Local Government Act 1958** before 1 March 1963; or
- (iiia) a parcel of land on a plan of subdivision containing not more than 2 allotments sealed under section 569B of the **Local Government Act 1958** on or after 1 March 1963; or
- (iv) a separate parcel of land or a separate part of a parcel of land if the parcel or part existed and could be sold separately prior to the commencement of section 44 of the **Subdivision Act 1988** (whether the land is disposed of before or after that commencement); or
- (c) any land (whether or not under the operation of the **Transfer of Land Act 1958**) which is a part of any land referred to in a subparagraph of paragraph (a) or (b), if the remainder of that land—
 - (i) was disposed of under section 569(2A) of the **Local Government Act 1958**, to the Crown or a public statutory body; or
 - (ii) was compulsorily acquired by an acquiring authority under the **Land Acquisition and Compensation Act 1986** or any corresponding previous enactment; or
 - (iii) was disposed of to an adjoining owner under section 569D(3A) of the **Local Government Act 1958**; or

S. 8A(1)(b)(iv)
substituted by
No. 48/1991
s. 53(3)(d).

S. 8A(1)(c)(i)
amended by
No. 48/1991
s. 53(4)(a).

S. 8A(1)(c)(iii)
amended by
No. 48/1991
s. 53(4)(a)(b).

S. 8A(1)(c)(iv)
inserted by
No. 48/1991
s. 53(4)(b).

(iv) was purchased by a person or transferred to a municipality under section 527 of the **Local Government Act 1958** or any corresponding previous enactment; or

S. 8A(1)(c)(iva)
inserted by
No. 48/1991
s. 53(4)(b).

(iva) was proclaimed as a public highway before the commencement of the **Subdivision Act 1988**; or

S. 8A(1)(c)(v)
inserted by
No. 48/1991
s. 53(5).

(v) is transferred or disposed of under section 207 of the **Local Government Act 1989** and a plan of subdivision is not required under that section.

S. 8A(2)
inserted by
No. 48/1991
s. 53(6).

(2) Expressions used in this section and defined in the **Subdivision Act 1988** have the same meanings in this section as they have in that Act.

S. 8A(3)
inserted by
No. 48/1991
s. 53(6).

(3) For the purposes of subsection (1)(a)(viii) and (b)(iv), land must be taken to be a separate parcel or a separate part of a parcel of land which existed and could be sold separately prior to the commencement of section 44 of the **Subdivision Act 1988** only if the parcel or part existed prior to that commencement and—

(a) the land—

(i) is under the operation of the **Transfer of Land Act 1958**; and

(ii) does not fall under subsection (1)(a)(i) to (vii); and

(iii) is not part of a plan of consolidation; and

(iv) either—

(A) is not part of an allotment on a plan sealed by a Council or confirmed under the **Local Government Act 1958** or of a Crown grant issued on or after

1 August 1969 and showing the allotment in two or more pieces;
or

(B) is part of an allotment on a plan or of a Crown grant mentioned in sub-subparagraph (A) but is dealt with by a person who is the registered proprietor of that and no other part of the land in the allotment or grant; or

(C) is part of the land in a folio of the register, but that part does not touch on any other land in the folio and is not part of an allotment on a plan or of a Crown grant mentioned in sub-subparagraph (A); or

(b) the land—

(i) is not under the operation of the **Transfer of Land Act 1958**; and

(ii) does not fall under subsection (1)(b)(i) to (iia); and

(iii) either—

(A) is not part of an allotment on a plan sealed by a Council or confirmed under the **Local Government Act 1958** on or after 1 August 1969 showing that allotment in two or more pieces;
or

(B) is part of an allotment mentioned in sub-subparagraph (A) but is dealt with by a person who is the owner of an estate in fee simple in that part and no other part; or

(C) is part of a parcel of land granted by a conveyance which lawfully brought about a subdivision, if that part does not touch on any other part of the parcel and is not part of an allotment mentioned in sub-subparagraph (A); or

(c) the land is part of a plan of consolidation approved by the Registrar and is dealt with by a person who is the registered proprietor of that part and no other part of the land in the plan.

S. 9
amended by
Nos 7052
s. 2(g)(i)(ii),
8661
s. 40(a)(b),
9128
s. 8(2)(a)–(c),
10216
s. 4(a)–(c),
repealed by
No. 53/1988
s. 45(Sch. 2
item 43).

* * * *

S. 9AA
inserted by
No. 10216 s. 5.

9AA Sale of land prior to approval of plan

S. 9AA(1)
amended by
Nos 53/1988
s. 45(Sch. 2
items 44, 46),
48/1991
s. 55(1)(a)(b),
14/2019
s. 5(1).

(1) A vendor must not enter into an off-the-plan contract with any person, except a statutory body or authority, unless—

S. 9AA(1)(a)
amended by
Nos 53/1988
s. 45(Sch. 2
item 45),
14/2019
s. 5(2).

(a) the off-the-plan contract provides that the deposit moneys payable by the purchaser are to be paid—

Sale of Land Act 1962
No. 6975 of 1962
Part I—Sale of land

- (i) to a legal practitioner, conveyancer or licensed estate agent acting for the vendor to be held by the legal practitioner, conveyancer or licensed estate agent on trust for the purchaser until the registration of the plan of subdivision; and

S. 9AA(1)(a)(i) amended by Nos 53/1988 s. 45(Sch. 2 item 45), 35/1996 s. 453(Sch. 1 item 73.2(a)(i)), 75/2006 s. 192(Sch. 2 item 5.2), 63/2010 s. 57(1)(a)(i).

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S. 9AA(1)(a)(ii) amended by Nos 53/1988 s. 45(Sch. 2 item 45), 35/1996 s. 453(Sch. 1 item 73.2(a)(ii)), 11/2001 s. 3(Sch. item 67.2(a)), repealed by No. 63/2010 s. 57(1)(a)(ii).

- (b) the deposit moneys payable under the contract do not exceed 10 per cent of the purchase price of the lot.

S. 9AA(1)(b) amended by No. 53/1988 s. 45(Sch. 2 item 45).

Note

The expression "does not exceed 10 per cent" means that a deposit may be up to and including 10 per cent.

Note to
s. 9AA(1)(b) inserted by No. 63/2010 s. 57(1)(b).

- (1A) An off-the-plan contract must contain a conspicuous notice to the purchaser stating—

S. 9AA(1A) inserted by No. 63/2010 s. 57(2) (as amended by No. 56/2012 s. 26), amended by No. 14/2019 s. 5(3).

- (a) that subject to the limit set by subsection (1)(b), the purchaser may negotiate with the vendor about the amount of deposit moneys payable under the contract; and

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No. 6975 of 1962
Part I—Sale of land

S. 9AA(1A)(b)
amended by
No. 14/2019
s. 5(4).

(b) that a substantial period of time may elapse between the day on which the purchaser signs the off-the-plan contract and the day on which the purchaser becomes the registered proprietor of the lot; and

S. 9AA(1A)(c)
amended by
No. 14/2019
s. 5(5).

(c) that the value of the lot may change between the day on which the purchaser signs the off-the-plan contract and the day on which the purchaser becomes the registered proprietor.

S. 9AA(2)
amended by
Nos 53/1988
s. 45(Sch. 2
items 46, 47),
35/1996
s. 453(Sch. 1
item 73.2(b)),
11/2001
s. 3(Sch.
item 67.2(b)),
75/2006
s. 192(Sch. 2
item 5.2),
substituted by
No. 63/2010
s. 57(3),
amended by
No. 14/2019
s. 5(6).

(2) The deposit moneys paid by the purchaser before the registration of the plan under an off-the-plan contract must be paid to the legal practitioner, conveyancer or licensed estate agent acting for the vendor.

S. 9AA(3)
amended by
No. 35/1996
s. 453(Sch. 1
item 73.2(c)),
repealed by
No. 63/2010
s. 57(4).

* * * *

S. 9AA(4)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.2(d)),
11/2001
s. 3(Sch.
item 67.2(b)),
repealed by
No. 63/2010
s. 57(4).

* * * *

Sale of Land Act 1962
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Part I—Sale of land

- (5) A person may sell land under an off-the-plan contract despite anything in section 8A.

S. 9AA(5) repealed by No. 53/1988 s. 45(Sch. 2 item 48), new s. 9AA(5) inserted by No. 48/1991 s. 55(2), amended by No. 14/2019 s. 5(7).

- (6) In this section (except subsection (1)(b)) and section 9AF, *deposit moneys* in relation to the sale of a lot includes any moneys which are part of the purchase price received by the vendor or on behalf of the vendor before the purchaser becomes entitled to a transfer or conveyance of the lot.

S. 9AA(6) amended by Nos 53/1988 s. 45(Sch. 2 items 49, 50) (as amended by No. 47/1989 s. 19(z)), 48/1991 s. 55(1)(c), 11/2001 s. 3(Sch. item 67.2(c)), substituted by No. 63/2010 s. 57(5).

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S. 9AA(7) amended by No. 53/1988 s. 45(Sch. 2 item 50) (as amended by No. 47/1989 s. 19(za)), repealed by No. 14/2019 s. 5(8).

9AAA Insurance

If an owners corporation for a plan of subdivision will be required by the **Owners Corporations Act 2006** to effect insurance after the plan is registered, the vendor must effect insurance in accordance with that Act as if the vendor were the owners corporation, until—

S. 9AAA inserted by No. 53/1988 s. 45(Sch. 2 item 51) (as amended by No. 47/1989 s. 19(zb)(i)(ii)), substituted by No. 69/2006 s. 217.

- (a) if the owners corporation meets within 6 months after the plan is registered, the end of one month after its first meeting; and
- (b) in any other case, the end of 6 months after the plan is registered.

S. 9AB
inserted by
No. 10216 s. 5.

9AB Disclosure of works

S. 9AB(1)
amended by
Nos 53/1988
s. 45(Sch. 2
items 53, 54),
14/2019
s. 6(1).

- (1) The vendor must disclose in an off-the-plan contract details of any works affecting the natural surface level of the land in the lot to which the contract relates or any land abutting the lot which is in the same subdivision as the lot which to the vendor's knowledge—

S. 9AB(1)(a)
amended by
No. 53/1988
s. 45(Sch. 2
item 52).

- (a) have been carried out on that land after the certification of the plan of subdivision and before the date of the contract; or
 - (b) are at the date of the contract being carried out or proposed to be carried out on that land.

S. 9AB(2)
amended by
Nos 53/1988
s. 45(Sch. 2
items 53, 54),
14/2019
s. 6(2).

- (2) The vendor under an off-the-plan contract must disclose to the purchaser details of any works affecting the natural surface level of the land in the lot to which the contract relates or of any land abutting the lot which is in the same subdivision as the lot which have not been disclosed in the off-the-plan contract and which to the vendor's knowledge—

S. 9AB(2)(a)
amended by
No. 53/1988
s. 45(Sch. 2
item 55).

- (a) have been carried out on that land after the date of the contract and before the registration of the plan of subdivision; or

- (b) after the date of the contract and before the registration of the plan of subdivision have been commenced to be carried out or are proposed to be carried out on the land. **S. 9AB(2)(b) amended by No. 53/1988 s. 45(Sch. 2 item 55).**
- (3) The vendor must make a disclosure under subsection (2) in writing as soon as practicable after the details required to be disclosed come to the knowledge of the vendor. **S. 9AB(3) amended by No. 14/2019 s. 6(3).**
- (4) If—
- (a) any works referred to in subsection (1) or (2) have been, are being or are to be carried out at the direction of a municipality or public authority; and
- (b) the vendor has been required to submit plans of the works or proposed works to the municipality or public authority—
- the vendor must—
- (c) in the case of a disclosure under subsection (1), include a copy of the plans in the off-the-plan contract; and **S. 9AB(4)(c) amended by No. 14/2019 s. 6(5).**
- (d) in the case of a disclosure under subsection (2), provide the purchaser with a copy of the plans at the time of that disclosure.
- (5) If the vendor under an off-the-plan contract knowingly or recklessly—
- (a) supplies false information to the purchaser under this section; or
- (b) fails to supply all the information required to be supplied to the purchaser under this section—
- the vendor shall be guilty of an offence and liable to a penalty of not more than 50 penalty units. **S. 9AB(5) amended by No. 14/2019 s. 6(6).**

9AC Amendments to plan

S. 9AC
inserted by
No. 10216 s. 5.

S. 9AC(1)
amended by
Nos 53/1988
s. 45(Sch. 2
item 56),
14/2019
s. 7(1).

- (1) If after an off-the-plan contract has been entered into and before the registration of the relevant plan of subdivision an amendment to the plan is required by the Registrar or requested by the vendor, the vendor shall within 14 days after the receipt of the requirement of the Registrar or the making of the request by the vendor (as the case requires) advise the purchaser in writing of the proposed amendment.

S. 9AC(2)
amended by
Nos 53/1988
s. 45(Sch. 2
item 57),
14/2019
s. 7(2).

- (2) The purchaser may rescind an off-the-plan contract within 14 days after being advised by the vendor under subsection (1) of an amendment to the plan of subdivision which will materially affect the lot to which the contract relates.

9AD Possession

S. 9AD
inserted by
No. 10216 s. 5.

S. 9AD(1)
amended by
Nos 53/1988
s. 45(Sch. 2
items 58, 59)
(as amended
by No.
47/1989
s. 22(c)),
14/2019
s. 8(1).

- (1) The purchaser under an off-the-plan contract is not entitled to possession of the lot to which the contract relates before the registration of the relevant plan of subdivision.

S. 9AD(2)
amended by
Nos 53/1988
s. 45(Sch. 2
item 59) (as
amended by
No. 47/1989
s. 22(c)),
14/2019
s. 8(2).

- (2) The vendor under an off-the-plan contract must not require the purchaser under the contract to take possession of the lot to which the contract relates before the registration of the relevant plan of subdivision.

Penalty: 50 penalty units.

- (3) The vendor must allow the purchaser under an off-the-plan contract reasonable access to the lot for any purpose connected with the proposed development or use of the lot.

S. 9AD(3)
amended by
Nos 53/1988
s. 45(Sch. 2
item 58) (as
amended by
No. 47/1989
s. 22(c)),
14/2019
s. 8(3).

- (4) This section does not apply to possession of a lot by a purchaser in consideration of a payment of an occupation fee.

S. 9AD(4)
inserted by
No. 53/1988
s. 45(Sch. 2
item 58) (as
amended by
No. 47/1989
s. 19(zc)).

9AE Rescission of an off-the-plan contract

S. 9AE
(Heading)
inserted by
No. 14/2019
s. 9(1).

S. 9AE
inserted by
No. 10216 s. 5.

- (1) If the vendor under an off-the-plan contract fails to comply with section 9AA(1) or (2) or 9AB the purchaser may rescind the off-the-plan contract at any time before the registration of the plan of subdivision.

S. 9AE(1)
amended by
Nos 53/1988
s. 45(Sch. 2
items 60, 61),
56/2012 s. 27,
14/2019
s. 9(2).

- (2) If the plan of subdivision is not registered within 18 months after the date of an off-the-plan contract for the sale of a lot on that plan of subdivision, or, if the contract specifies another period, before the end of that specified period, the purchaser may, at any time after the expiration of that period but before the plan is so registered, rescind the contract.

S. 9AE(2)
amended by
Nos 53/1988
s. 45(Sch. 2
items 60, 62)
(as amended
by No.
47/1989
s. 19(zd)),
48/1991
s. 55(3)(a)(b),
14/2019
s. 9(3).

S. 9AF
inserted by
No. 10216 s. 5.

9AF Repayment of deposit moneys

(1) If—

S. 9AF(1)(a)
amended by
Nos 53/1988
s. 45(Sch. 2
item 63),
14/2019
s. 10(1).

(a) the vendor rescinds an off-the-plan contract as a result of a default by the purchaser, the vendor is immediately entitled to be paid the deposit money in the vendor's own right; or

S. 9AF(1)(b)
amended by
Nos 53/1988
s. 45(Sch. 2
item 63),
48/1991
s. 55(4),
14/2019
s. 10(2).

(b) the purchaser rescinds an off-the-plan contract as a result of a default by the vendor or pursuant to section 9AC or 9AE, the purchaser is entitled to the immediate return of the deposit moneys less the amount of any occupation fees paid by the purchaser.

(2) Nothing in subsection (1) shall limit or affect the power of the court—

(a) to order the repayment of the deposit moneys (whether that order is made pursuant to section 49(2) of the **Property Law Act 1958** or otherwise); or

(b) to relieve a purchaser against forfeiture of the deposit.

S. 9AG
inserted by
No. 53/1988
s. 46 (as
amended by
No. 47/1989
s. 19(s)(t)(u)),
repealed by
No. 48/1991
s. 55(5).

* * * * *

S. 9AH
inserted by
No. 53/1988
s. 46 (as
amended by
No. 47/1989
s. 19(v)).

9AH Where land sold does not accord with land in plan

(1) This section applies to the sale of land if, at date the contract is entered into, section 20A of the **Subdivision Act 1988** applies to the land and has not been complied with.

- (2) If a contract for the sale of land to which this section applies has been entered into, the purchaser may avoid the sale if—
- (a) the contract has not been completed; and
 - (b) the purchaser has not disposed of the land; and
 - (c) after the date the contract is entered into, the applicant under the **Subdivision Act 1988** gives to the Council advice by a licensed surveyor under section 20A of that Act that there is a substantial discrepancy between any boundary of the land and that boundary as shown on the plan; and
 - (d) not more than 18 months have passed since the contract was entered into.
- (3) If the purchaser avoids the sale, all money paid by the purchaser under the contract is recoverable by the purchaser except for any money paid by the purchaser as an occupation fee for any time during which the purchaser was in actual occupation of the land the subject of the sale.

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S. 9A
inserted by
No. 9128
s. 8(1),
amended by
Nos 9427
s. 6(1)(Sch. 5
item 163),
9720
s. 3(2)(Sch.
item 90),
44/1987
s. 36(2),
repealed by
No. 53/1988
s. 45(Sch. 2
item 64).

S. 10
amended by
Nos 7228
s. 7(Sch. 5
Pt 3(a)(b)),
8661
s. 40(c)–(e),
121/1986
s. 112,
substituted by
No. 53/1988
s. 45(Sch. 2
item 64) (as
amended by
No. 47/1989
s. 19(ze)(i)).

10 Amendment affecting pre-sold lots

S. 10(1)
amended by
No. 14/2019
s. 11(1).

- (1) If any amendment to a plan of subdivision is made after an off-the-plan contract for the sale of a lot on the plan of subdivision is entered into which restricts or limits the use of the lot the purchaser may avoid the sale at any time before the plan of subdivision is registered unless the amendment results from any recommendation of a public authority or government department.

S. 10(2)
amended by
No. 14/2019
s. 11(2).

- (2) An off-the-plan contract may provide that subsection (1) does not apply in respect of the final location of an easement shown on a certified plan.

S. 10A
inserted by
No. 14/2019
s. 12(1).

10A Residential off-the-plan contracts and sunset clauses

If a sunset clause in a residential off-the-plan contract purports to automatically rescind the contract on the part of the vendor, the sunset clause is taken to permit the contract to be rescinded on the part of the vendor on or after the sunset date, in accordance with this Division.

S. 10B
inserted by
No. 14/2019
s. 12(1).

10B Power of vendor to rescind a residential off-the-plan contract under sunset clause

- (1) A vendor must not rescind a residential off-the-plan contract under a sunset clause in that contract except as provided for in this Division.

- (2) Subject to subsection (3), a vendor may rescind a residential off-the-plan contract under a sunset clause if—
- (a) the relevant plan of subdivision has not been registered by the sunset date; or
 - (b) an occupancy permit has not been issued by the sunset date.
- (3) Before rescinding a residential off-the-plan contract under a sunset clause, the vendor must obtain the written consent of each purchaser to the rescission after giving each purchaser, at least 28 days before the proposed rescission, written notice setting out—
- (a) the reason why the vendor is proposing to rescind the contract; and
 - (b) the reason for the delay in the registration of the plan of subdivision or the issuing of the occupancy permit; and
 - (c) that the purchaser is not obliged to consent to the proposed rescission.

10C Inconsistent provision of no effect

A provision of a residential off-the-plan contract has no effect to the extent that it is inconsistent with sections 10A, 10B and 10E.

S. 10C
inserted by
No. 14/2019
s. 12(1),
amended by
No. 14/2019
s. 12(3).

10D Purported rescission a breach of a residential off-the-plan contract

The purported rescission of a residential off-the-plan contract in contravention of this Division is taken to be a breach of that contract.

S. 10D
inserted by
No. 14/2019
s. 12(1).

S. 10E
inserted by
No. 14/2019
s. 12(2).

10E Vendor may obtain order of Supreme Court to rescind

- (1) A vendor under a residential off-the-plan contract that contains a sunset clause may apply to the Supreme Court for an order permitting the vendor to rescind the contract under the sunset clause.
- (2) On the application of a vendor under subsection (1), the Supreme Court may make an order permitting the vendor to rescind the residential off-the-plan contract if the Court is satisfied that making the order is just and equitable in all the circumstances.
- (3) In determining whether to make an order under subsection (2), the Supreme Court must have regard to—
 - (a) the terms of the residential off-the-plan contract; and
 - (b) whether the vendor has acted unreasonably or in bad faith; and
 - (c) the reason for the delay in registering the relevant plan of subdivision or in an occupancy permit being issued; and
 - (d) the likely date on which the relevant plan of subdivision will be registered or the occupancy permit will be issued; and
 - (e) whether the lot that is the subject of the residential off-the-plan contract has increased in value; and
 - (f) the effect of the rescission on each purchaser; and
 - (g) any other matter that the Court considers to be relevant; and
 - (h) any other prescribed matter.

- (4) If the Supreme Court makes an order under subsection (2), the Court may make any other order it considers just and equitable in all the circumstances, including an order for reasonable compensation of the purchaser.
- (5) The vendor is liable to pay the costs of a purchaser in relation to the proceeding for an order under this section unless the vendor satisfies the Supreme Court that the purchaser unreasonably withheld consent to the rescission of the residential off-the-plan contract under the sunset clause.

10F Information to be included in sunset clause

S. 10F
inserted by
No. 14/2019
s. 13.

- (1) Subject to subsection (2), a sunset clause in a residential off-the-plan contract must include a statement that—
 - (a) the vendor is required to give notice of a proposed rescission of the contract under the sunset clause; and
 - (b) the purchaser has the right to consent to the proposed rescission of the contract but is not obliged to consent; and
 - (c) the vendor has the right to apply to the Supreme Court for an order permitting the vendor to rescind the contract; and
 - (d) the Supreme Court may make an order permitting the rescission of the contract if satisfied that making the order is just and equitable in all the circumstances.

Penalty: For a natural person, 240 penalty units;
For a body corporate, 1200 penalty units.

- (2) Subsection (1) does not apply to a residential off-the-plan contract entered into before the date on which this section comes into operation.

10G Prohibition on recovering land tax or commercial and industrial property tax under contract of sale of land

S. 10G
(Heading)
amended by
No. 16/2024
s. 62(1).

S. 10G
inserted by
No. 38/2023
s. 16.

S. 10G(1)
amended by
No. 16/2024
s. 62(2).

- (1) A provision of a contract of sale of land for a sale price less than the threshold amount is of no effect to the extent that the provision purports to require the purchaser under the contract to pay an amount for or towards tax for which the vendor is or may become liable in respect of the land under the **Land Tax Act 2005** or the **Commercial and Industrial Property Tax Reform Act 2024**.

S. 10G(2)
amended by
No. 16/2024
s. 62(2).

- (2) A vendor must not enter into a contract of sale of land for a sale price less than the threshold amount if the contract purports to require the purchaser under the contract to pay an amount for or towards tax for which the vendor is or may become liable in respect of the land under the **Land Tax Act 2005** or the **Commercial and Industrial Property Tax Reform Act 2024**.

Penalty: For a natural person, 60 penalty units;
For a body corporate, 300 penalty units.

- (3) In this section—

S. 10G(3)
def. of
sale price
amended by
No. 50/2024
s. 47.

sale price, in relation to a contract, means the price of the land that is specified in the contract, however expressed and including any amount of GST payable on the supply constituted by the sale of the land, less any discount or rebate that is specified in the contract, whether or not the discount or rebate is contingent;

threshold amount has the meaning given in section 10I.

10H Prohibition on recovering windfall gains tax under option or contract of sale of land

S. 10H
inserted by
No. 38/2023
s. 16.

- (1) A provision of an option to enter into a contract of sale of land is of no effect to the extent that the provision purports to require the purchaser under the contract of sale of land to pay an amount for or towards tax payable under an existing windfall gains tax liability in respect of the land.
- (2) A person must not grant an option to enter into a contract of sale in respect of land if—
 - (a) there is an existing windfall gains tax liability in respect of the land; and
 - (b) the option purports to require the purchaser of the land to pay an amount for or towards the tax payable under the windfall gains tax liability.

Penalty: For a natural person, 60 penalty units;
For a body corporate, 300 penalty units.

- (3) A provision of a contract of sale of land is of no effect to the extent that the provision purports to require the purchaser under the contract to pay an amount for or towards tax payable under an existing windfall gains tax liability in respect of the land.
- (4) A vendor must not enter into a contract of sale of land if—
 - (a) there is an existing windfall gains tax liability in respect of the land; and
 - (b) the contract purports to require the purchaser of the land to pay an amount for or towards tax payable under the windfall gains tax liability.

Penalty: For a natural person, 60 penalty units;
For a body corporate, 300 penalty units.

(5) In this section—

windfall gains tax liability means a liability for an amount of tax—

- (a) arising under the **Windfall Gains Tax Act 2021**; and
- (b) specified in a notice of assessment served on any person under section 14 of the **Taxation Administration Act 1997**.

S. 10I
inserted by
No. 38/2023
s. 16.

10I CPI adjusted threshold amount

(1) The ***threshold amount*** for a calendar year is to be determined in accordance with the following formula—

- (a) for a contract entered into on or after 1 January 2024 and on or before 31 December 2024, \$10 000 000;
- (b) for each subsequent calendar year, the amount determined in accordance with the following formula—

$$TA = \frac{A \times B}{C}$$

where—

TA is the threshold amount being determined for a calendar year;

A is the amount of the threshold amount for the previous calendar year, as rounded up or down in accordance with subsection (2);

B is the sum of—

- (a) the consumer price index number for the last reference period in the

calendar year preceding the
previous calendar year; and

- (b) the total of the consumer price
index numbers for each of the
reference periods (other than the
last) in the previous calendar year;

C is the sum of—

- (a) the consumer price index number
for the last reference period in the
calendar year one year earlier than
the calendar year referred to in
paragraph (a) of B; and
- (b) the total of the consumer price
index numbers for each of the
reference periods (other than the
last) in the calendar year one year
earlier than the calendar year
referred to in paragraph (b) of B.

Example

In the case of a determination of the threshold amount for 2025, "A" is the threshold amount for 2024, "B" is the sum of the consumer price index numbers for December 2023, March 2024, June 2024 and September 2024 and "C" is the sum of the consumer price index numbers for December 2022, March 2023, June 2023 and September 2023.

- (2) The threshold amount determined under subsection (1)(b) is to be rounded up or down to the nearest \$100 000 and, if the amount of the CPI to be adjusted is an exact multiple of \$50 000, is to be rounded up.
- (3) The Director of Consumer Affairs must publish the threshold amount for a calendar year on an appropriate website on or before 1 December in the calendar year preceding the relevant calendar year.

(4) A failure to comply with subsection (3) in respect of a calendar year does not affect the operation of section 10G in respect of the threshold amount for that year.

(5) In this section—

consumer price index means the all groups consumer price index weighted average of eight capital cities in original terms published by the Australian Bureau of Statistics as at 15 November immediately preceding the date on which the Director of Consumer Affairs publishes the threshold amount under subsection (3).

S. 11
amended by
No. 8661
s. 40(c)(e)(f),
substituted by
Nos 53/1988
s. 45(Sch. 2
item 64) (as
amended by
No. 47/1989
s. 19(ze)(ii)),
69/2006 s. 218.

11 Owners corporation must have insurance policy

(1) A person cannot sell a lot affected by an owners corporation unless the vendor or the owners corporation has a current insurance policy in accordance with the **Owners Corporations Act 2006** for any insurance required by that Act to be effected by the owners corporation.

(2) If a lot is sold in contravention of subsection (1) the purchaser may avoid the sale at any time before the contract is completed.

No. 6685 s. 2.
S. 12
amended by
Nos 9554
s. 2(2)(Sch. 2
item 289),
14/2019
s. 14(2),
6/2025 s. 117.

12 Offences in relation to the sale of land

Any person who, with the intention of inducing any person to buy any land—

- (a) knowingly or recklessly makes or publishes any false representation or wilfully false promise;
- (b) states or publishes any statement that he or some other person named by him will buy, at a profit to be received in the future by such prospective purchaser—

(i) the land in question or any part thereof;

- (ii) any interest in that land or in any part thereof; or
- (iii) any other land or chattel owned by the prospective purchaser;
- (c) states or publishes any statement that he or some other person named by him will at some future time obtain for the prospective purchaser a profit on the sale of the land in question or any part thereof or any interest in that land or in any part thereof;
- (d) makes or publishes any statement promise or forecast which he knows to be misleading or deceptive or knowingly conceals any material facts or recklessly makes any statement or forecast which is misleading or deceptive; or
- (e) makes any statement promise or forecast concerning the provision of amenities or services which are normally provided by the State or by any statutory authority unless he has been advised in writing by the State or by the authority in question that such amenities or services will be so provided—

S. 12(d)
amended by
No. 14/2019
s. 14(1).

shall be guilty of an offence against this Act and shall for every such offence be liable to a penalty of not more than 240 penalty units or to imprisonment for a term of not more than twelve months.

12A Guidelines

- (1) The Director of Consumer Affairs Victoria may make guidelines to assist vendors of land and their agents to understand what a material fact is likely to be for the purposes of section 12(d).
- (2) A court may have regard to any guidelines made under subsection (1).

S. 12A
inserted by
No. 14/2019
s. 15.

No. 3933 s. 44.

13 Burden of proof as to knowledge of falsity of representation

- (1) In any action commenced in respect of the sale of any land if it is proved that any representation made on such sale was false and that any party to such action was induced by such representation to enter into a contract to purchase such land the person making such representation shall be deemed to have made the same with knowledge of its falsity unless he proves—
- (a) that he had reasonable ground to believe and did believe that the representation was true or that he had no reason to suspect that the representation was false; and
 - (b) that otherwise he had acted innocently.

No. 3933 s. 45.

- (2) No term or provision of any agreement (whether entered into before or after the commencement of this Act) for the sale and purchase of any land therein shall be so construed as in any way to prevent the purchaser from claiming or being awarded damages or any other relief in respect of any fraudulent misrepresentation in connexion with the purchase of such land.

S. 14
amended by
No. 7052
s. 2(h),
substituted by
No. 6/2008
s. 31.

14 Certain agreements void

Any agreement under which a person purports to waive any right the person may have under this Act to avoid a contract is void.

Sale of Land Act 1962
No. 6975 of 1962
Part I—Sale of land

	*	*	*	*	*	S. 14A inserted by No. 7272 s. 4, amended by No. 7898 s. 3(b), substituted by No. 8661 s. 40(g), amended by No. 10216 s. 6(2), repealed by No. 53/1988 s. 45(Sch. 2 item 65).
14B Further powers of arbitrator with respect to subdivisional land						S. 14B inserted by No. 10216 s. 6(1).
(1) If any difference or dispute arises between the vendor and the purchaser with respect to—						
(a) the non-compliance by either party with any of the requirements of sections 9AA to 9AH; or						S. 14B(1)(a) amended by No. 48/1991 s. 56(2)(a).
(b) a purported rescission by the purchaser of the contract of sale pursuant to section 9AC, 9AE or 9AH—						S. 14B(1)(b) amended by No. 48/1991 s. 56(2)(b).
either party may refer the difference or dispute to an arbitrator for determination.						
(2) Without affecting the generality of section 21, the arbitrator may make an order under this section requiring the vendor to pay compensation to the purchaser in respect of any loss suffered by the purchaser arising out of the contract.						

15 Notices

S. 15(1)(b)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.3),
75/2006
s. 192(Sch. 2
item 5.2A) (as
amended by
No. 17/2007
s. 32(2)).

- (1) A notice in writing required or authorized to be given by this Act shall be sufficiently served upon any person—
 - (a) if it is served personally or left at his last known place of abode in Victoria; or
 - (b) if served personally or by post upon his legal practitioner or conveyancer named in the contract or otherwise authorized by the person to be served to act in the particular matter.
- (2) A person shall be deemed not to have complied with a requirement contained in such notice if the requirement is not complied with—
 - (a) within ninety days of service;
 - (b) within any extension of time agreed to by the parties within ninety days of the service; or
 - (c) within the time allowed by an arbitrator on application made within ninety days of the service—

whichever is the longer.

S. 15A
inserted by
No. 11/2023
s. 56.

15A Approved building manual must be given to purchaser of land

- (1) On the settlement of a contract for the sale of land, on which there is a building in respect of which a building manual has been approved by a relevant building surveyor under section 41B(1) of the **Building Act 1993**, the vendor of the land must give an up-to-date copy of the approved building manual to the purchaser of the land.

Penalty: 60 penalty units, in the case of a natural person;
300 penalty units, in the case of a body corporate.

- (2) Subsection (1) does not apply if the land is affected by an owners corporation.

16 Offences

- (1) Any person who sells any land in contravention of the provisions of this Act shall be guilty of an offence against this Act and where no other penalty is expressly provided be liable to a penalty of not more than 10 penalty units.

S. 16(1)
amended by
Nos 7272
s. 5(a), 9554
s. 2(2)(Sch. 2
item 288).

* * * *

S. 16(2)
amended by
No. 7272
s. 5(b),
repealed by
No. 103/2004
s. 68.

* * * *

S. 16(3)
repealed by
No. 103/2004
s. 68.

- (4) Notwithstanding anything in this section it shall be a defence to a prosecution under this section if the accused satisfies the court—

S. 16(4)
inserted by
No. 7272
s. 5(c),
amended by
No. 68/2009
s. 97(Sch.
item 107).

- (a) that at the time of the alleged contravention of the provisions of this Act—

- (i) he was a licensed estate agent within the meaning of the **Estate Agents Act 1980**; and

S. 16(4)(a)(i)
amended by
No. 9428
s. 3(1).

- (ii) he had acted only as agent for the vendor in connexion with the sale; and

- (b) that he had acted honestly and reasonably and ought fairly to be excused in all the circumstances of the case.

No. 3933 s. 47.

S. 17
amended by
No. 14/2019
s. 16 (ILA
s. 39B(1)).

S. 17(2)
inserted by
No. 14/2019
s. 16.

17 Regulations

- (1) The Governor in Council may make regulations for or with respect to all matters and things authorized or required to be prescribed or necessary or convenient to be prescribed for carrying out or giving effect to this Act.
- (2) Without limiting subsection (1), for the purposes of section 29WA(b), the Governor in Council may make regulations for or with respect to requirements for rent-to-buy arrangements, in particular—
 - (a) money paid for or with respect to the rights or obligations that are the subject of such arrangements, including the following—
 - (i) the holding of the money on trust on behalf of purchasers;
 - (ii) the money being held in interest bearing accounts;
 - (iii) other matters as to interest on the money, including the application of the interest and dealing with the interest if the purchaser's right is not exercised; and
 - (b) the inclusion of certain conditions in rent-to-buy arrangements, including conditions for or with respect to any obligation in the arrangement on a purchaser to purchase any land that is the subject of the arrangement; and
 - (c) any other requirements as to the effect of, or terms and conditions of, rent-to-buy arrangements.

Division 2—Arbitrators

18 Power to Governor in Council to appoint arbitrators

- (1) For the purposes of this Act the Governor in Council may appoint so many persons to be arbitrators as he thinks fit.
- (2) No person shall be appointed an arbitrator unless he is a judge of the county court or a person qualified to be appointed a judge of the county court.

19 Appointment of arbitrators

A person appointed to be an arbitrator shall be—

- (a) appointed for such term as the Governor in Council thinks fit;
- (b) eligible for re-appointment; and
- (c) entitled to such salary and allowances as are prescribed.

20 Power to arbitrators to appoint assessors

- (1) An arbitrator may if he thinks fit call in the aid of one or more assessors to assist him in determining any matter under this Act.
- (2) An arbitrator shall not be bound by the opinion or finding of any such assessor.
- (3) Any assessor called in by an arbitrator shall be selected from a panel of persons appointed by notice in writing under the hand of the Attorney-General published in the Government Gazette.
- (4) Assessors shall be paid such sitting fees as are prescribed.

21 Jurisdiction and powers of arbitrators

S. 21(1)
amended by
Nos 7052
s. 2(i), 7272
s. 7(2), 8149
s. 25(1),
110/1986
s. 140(2).

- (1) An arbitrator shall entertain, inquire into and decide upon all matters which an arbitrator is empowered to determine by this Act and for that purpose may do all such matters and things relating thereto including the ordering of the payment of costs by any party and in the same manner and to the same extent as the Supreme Court is empowered to do in the exercise of its ordinary jurisdiction and the decision of an arbitrator shall be enforceable as if it were a judgment or an order of the Supreme Court and shall be final and without appeal.

S. 21(2)
amended by
No. 109/1994
s. 34(13).

- (2) An arbitrator may if he thinks fit reserve any question in the form of a special case for the opinion of the Court of Appeal which opinion shall be given.

- (3) In deciding any matter an arbitrator shall be guided by the real justice of the matter without regard to the legal forms and solemnities.

S. 21(4)
amended by
No. 18/1989
s. 13(Sch. 2
item 76(e)).

- (4) An arbitrator shall not make any order affecting the Register kept under the **Transfer of Land Act 1958** without prior consultation with the Registrar or his nominee.

22 Regulations

S. 22
amended by
Nos 7052
s. 2(j),
104/1994
s. 35(Sch. 2
item 11).

The Governor in Council may make regulations for or with respect to applications to and proceedings before arbitrators including regulations fixing the fees to be paid on or with respect to any such application or proceedings.

Division 3—Deposits

Pt 1 Div. 3
(Heading and
ss 23–28)
inserted by
No. 9423
s. 2(2).

23 Definitions

New s. 23
inserted by
No. 9423
s. 2(2).

In this Division unless inconsistent with the
context or subject-matter—

commission has the same meaning as in section 4
of the **Estate Agents Act 1958**¹;

S. 23 def. of
commission
amended by
No. 74/2000
s. 3(Sch. 1
item 112).

deposit moneys in relation to a transaction for the
sale of land includes any moneys which are
part of the purchase price received by the
vendor or on behalf of the vendor before the
purchaser becomes entitled to a transfer or
conveyance of the land which is the subject
of the transaction, or in the case of a terms
contract any moneys received by the
vendor or on behalf of the vendor before
the purchaser becomes entitled to possession
or to the receipt of rent and profits pursuant
to the contract.

S. 23 def. of
*deposit
moneys*
amended by
Nos 9471 s. 2,
9549
s. 2(1)(Sch.
item 202),
14/2019
s. 17(a).

* * * * *

S. 23 def. of
estate agent
amended by
No. 11/2002
s. 3(Sch. 1
item 58),
repealed by
No. 14/2019
s. 17(b).

* * * * *

S. 23 def. of
solicitor
repealed by
No. 35/1996
s. 453(Sch. 1
item 73.4).

S. 24
(Heading)
inserted by
No. 75/2006
s. 192(Sch. 2
item 5.3).

New s. 24
inserted by
No. 9423
s. 2(2).

S. 24(1)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.5(a)),
75/2006
s. 192(Sch. 2
item 5.4).

24 Deposit moneys held by legal practitioner, conveyancer or estate agent to be held as stakeholder

- (1) Any deposit moneys received by a legal practitioner, conveyancer or estate agent in the course of a transaction for the sale of land shall be held by that legal practitioner, conveyancer or estate agent as a stakeholder until—
- (a) in the case of a cash transaction, the purchaser becomes entitled to a transfer or conveyance of the land; or
 - (b) in the case of a terms contract, the purchaser becomes entitled to possession or to the receipt of rents and profits—

at which time the deposit moneys may be paid to the vendor in his own right or as the vendor directs.

S. 24(1A)
inserted by
No. 9471 s. 3,
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.5(a)),
75/2006
s. 192(Sch. 2
item 5.5),
repealed by
No. 1/2010
s. 75.

* * * * *

- (2) This section does not prevent the transfer of deposit moneys from—
- (a) a legal practitioner, estate agent or conveyancer to another legal practitioner, estate agent or conveyancer if that other legal practitioner, estate agent or conveyancer is acting for the vendor in relation to the sale; or
 - (b) a vendor to a legal practitioner, estate agent or conveyancer acting for that vendor.
- (3) Any deposit moneys transferred under subsection (2) must continue to be held by the person to whom they were transferred as a stakeholder under this Division.

S. 24(2)
repealed by
No. 35/1996
s. 453(Sch. 1
item 73.5(b)),
new s. 24(2)
inserted by
No. 1/2010
s. 75.

S. 24(3)
inserted by
No. 1/2010
s. 75.

25 Deposit moneys to be paid into special purpose account or held by legal practitioner, conveyancer or estate agent

S. 25
(Heading)
inserted by
No. 75/2006
s. 192(Sch. 2
item 5.6).
New s. 25
inserted by
No. 9423
s. 2(2).

- (1) Any deposit moneys received by a vendor in the course of a transaction for the sale of land other than deposit moneys released pursuant to section 27 shall be paid within seven days after their receipt by the vendor—
- (a) to a conveyancer, an estate agent or legal practitioner acting for the vendor; or

S. 25(1)
substituted by
No. 9471
s. 4(a).

S. 25(1)(a)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.6(a)(i)),
75/2006
s. 192(Sch. 2
item 5.7).

S. 25(1)(b)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.6(a)
(ii)), 11/2001
s. 3(Sch.
item 67.3(a)).

(b) into a special purpose account in an authorised deposit-taking institution in Victoria to be nominated by the vendor in the joint names of the purchaser and the vendor.

S. 25(2)
amended by
No. 9471
s. 4(b).

(2) An account established under this section may be drawn upon only with the signature of both vendor and purchaser or the personal representative of the vendor or purchaser (as the case may be).

S. 25(3)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.6(b)),
11/2001
s. 3(Sch.
item 67.3(b)).

(3) Nothing in this section shall impose any additional liability upon the authorised deposit-taking institution in respect of any money deposited pursuant to this section.

S. 25(4)
amended by
No. 9554
s. 2(2)(Sch. 2
item 290).

(4) Where a vendor or purchaser fails to comply with any of the provisions of this section he shall be guilty of an offence against this Act and liable to a penalty of not more than 10 penalty units.

New s. 26
inserted by
No. 9423
s. 2(2),
amended by
No. 9471
s. 5(a).

26 Application of deposit moneys where contract rescinded

- (1) Notwithstanding sections 24 and 25, where in a transaction for the sale of land—
- (a) the vendor rescinds the contract as the result of a default by the purchaser, the vendor shall be immediately entitled to be paid the deposit moneys in his own right; or
 - (b) the purchaser rescinds the contract as the result of a default by the vendor, the purchaser shall be entitled to the immediate return of the deposit moneys.

(2) Nothing in subsection (1) shall limit or affect the power of the court—

S. 26(2)
inserted by
No. 9471
s. 5(b).

(a) to order the repayment of the deposit moneys (whether that order is made pursuant to section 49(2) of the **Property Law Act 1958** or otherwise); or

(b) to relieve a purchaser against forfeiture of the deposit.

27 Release of deposit moneys in certain circumstances

New s. 27
inserted by
No. 9423
s. 2(2),
substituted by
No. 9471 s. 6.

(1) Where a legal practitioner, conveyancer or estate agent is holding deposit moneys as a stakeholder under section 24, the purchaser may by authorization in writing empower the legal practitioner, conveyancer or estate agent (as the case may be) to release those deposit moneys to the vendor in his own right or as the vendor directs.

S. 27(1)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.7),
75/2006
s. 192(Sch. 2
item 5.8).

(2) Subsection (1) shall only operate—

(a) where the contract is not subject to any condition enuring for the benefit of the purchaser; and

(b) where the purchaser has accepted title or may be deemed to have accepted title.

(3) An authorization in writing shall not be effective unless and until the vendor has given the purchaser a notice in writing setting out—

S. 27(3)
amended by
No. 42/1989
s. 4(b).

(a) if there is a mortgage over the land which is the subject of the transaction, the particulars specified in Schedule 1; and

S. 27(3)(a)
substituted by
No. 42/1989
s. 4(b).

* * * * *

S. 27(3)(b)
repealed by
No. 42/1989
s. 4(b).

S. 27(3)(c)
amended by
No. 42/1989
s. 4(c).

(c) particulars of any caveat lodged under the
Transfer of Land Act 1958 in respect of the
land which is the subject of the transaction—

and the purchaser has given notice under
subsection (4) that he is satisfied with those
particulars.

(4) Where the purchaser is satisfied—

(a) that the particulars provided under
paragraphs (a) and (c) of subsection (3)
are accurate; and

S. 27(4)(b)
amended by
No. 48/1991
s. 56(3).

(b) that the particulars provided under
paragraph (a) of subsection (3) indicate that
the purchase price is sufficient to discharge
all mortgages over the property—

he shall give the vendor notice in writing to that
effect within 28 days of receiving the particulars.

(5) A notice in writing under subsection (4) stating
that the purchaser is satisfied with the particulars
shall be deemed to be the authorization required
by subsections (1) (2) and (3).

(6) Where the purchaser is not satisfied with the
particulars he shall within 28 days of receiving
them give notice in writing stating that he is not
satisfied with the particulars and giving the
reasons why he is not satisfied.

(7) Where the purchaser fails to give a notice under
either subsection (4) or (6) within the time limited
by the subsection he shall—

(a) be deemed to be satisfied with the particulars
provided; and

(b) be deemed to have given the authorization
required by subsection (1).

- (8) Where a vendor knowingly or recklessly supplies false information to the purchaser regarding any particulars required to be given under subsection (3)—
- (a) he shall be guilty of an offence against this Act and liable to a penalty of not more than 50 penalty units; and
 - (b) the purchaser shall be entitled to rescind the contract for the sale of the land and recover the deposit moneys.
- (9) Where an estate agent is empowered to pay deposit moneys to the vendor pursuant to subsection (1) the estate agent may retain out of the deposit moneys an amount equal to the commission and any auction expenses that he is or will become entitled to and any other moneys that he is or will become entitled to by law in relation to the transaction.
- (10) Notwithstanding section 2(1) of this Act, for the purposes of this section **mortgage** means a charge or lien on land for securing money or money's worth.
- (11) This section shall not operate to authorize the release of deposit moneys which are being held by a legal practitioner, conveyancer or estate agent under section 9AA.
- S. 27(8)(a) amended by No. 9858 s. 4(2).
- S. 27(9) amended by No. 9688 s. 2.
- S. 27(11) amended by Nos 10216 s. 7, 53/1988 s. 45(Sch. 2 item 66) (as amended by No. 47/1989 s. 19(zf)), 35/1996 s. 453(Sch. 1 item 73.7), 75/2006 s. 192(Sch. 2 item 5.8).

New s. 28
inserted by
No. 9423
s. 2(2),
substituted by
No. 9471 s. 7.

28 Powers of purchaser where contract in contravention of this Division

- (1) Where any contract for the sale of land contains provisions in contravention of this Division—
 - (a) those provisions shall be void and of no effect; and
 - (b) the contract shall be voidable by the purchaser at any time before completion and any person who has paid money under the contract shall be entitled to recover it.
- (2) Notwithstanding paragraph (b) of subsection (1) the contract shall not be voidable by the purchaser if the Court is satisfied that the vendor has acted honestly and reasonably and ought fairly to be excused for the contravention and that the purchaser is substantially in as good a position as if all the relevant provisions of this Division had been complied with.

New s. 29
inserted by
No. 9471 s. 8,
substituted by
No. 6/2008
s. 32.

29 Effect on terms contract deposit provisions

Nothing in this Division affects the operation of section 29O.

Pt 1 Div. 4
(Heading and
ss 29A–29W)
inserted by
No. 6/2008
s. 33.

Division 4—Terms contracts

Subdivision 1—Introductory

S. 29A
inserted by
No. 6/2008
s. 33.

29A What is a terms contract?

- (1) For the purposes of this Act a contract is a terms contract if it is an executory contract for the sale and purchase of any land under which the purchaser is—
 - (a) obliged to make 2 or more payments (other than a deposit or final payment) to the

vendor after the execution of the contract and before the purchaser is entitled to a conveyance or transfer of the land; or

- (b) entitled to possession of the land or to the receipt of rents and profits before the purchaser becomes entitled to a conveyance or transfer of the land.

S. 29A(1)(b)
amended by
No. 12/2015
s. 7(1).

- (1A) A payment made by a purchaser under a contract for the sale and purchase of any land following a default by the purchaser or agreed to by the purchaser and vendor in anticipation of a default by the purchaser does not count as a payment for the purpose of subsection (1)(a).

S. 29A(1A)
inserted by
No. 12/2015
s. 7(2),
amended by
No. 14/2019
s. 18.

- (2) In subsection (1)—

deposit means any part of the purchase price that the contract (including the contract as varied by written agreement between the parties after initial execution) specifies as being a deposit and provides must be paid, whether by one or more payments, within a specified period, not exceeding 60 days, after the execution of the contract;

S. 29A(2) def.
of *deposit*
substituted by
No. 12/2015
s. 7(3).

final payment means a payment on the making of which the purchaser becomes entitled to a conveyance or transfer of the land.

Subdivision 2—Certain terms contracts prohibited

29AB Definitions

In this Subdivision—

prescribed amount means the amount prescribed by the regulations for the purposes of this Subdivision;

S. 29AB
inserted by
No. 14/2019
s. 19.

S. 29AB
def. of
sale price
amended by
No. 50/2024
s. 48.

sale price, in relation to a terms contract, means the price of the land that is specified in the contract, however expressed and including any amount of GST payable on the supply constituted by the sale of the land, less any discount or rebate that is specified in the contract, whether or not the discount or rebate is contingent.

S. 29B
inserted by
No. 6/2008
s. 33.

29B Which terms contracts are prohibited?

- (1) A person must not sell, under a terms contract, land that is in an identified folio under the **Transfer of Land Act 1958** or is not under the operation of that Act unless—
 - (a) at the date of the making of the contract, the person has a good safe holding and marketable title to the land; and
 - (b) the person—
 - (i) holds an estate in fee simple in the land; or
 - (ii) is, as mortgagee, entitled to an estate in fee simple in the land; or
 - (iii) is, as mortgagor, entitled in fee simple to the equity of redemption in the land; or
 - (iv) is empowered by or under an Act to deal with an estate in fee simple in the land.
- (2) A person must not sell, under a terms contract, land that is under the **Transfer of Land Act 1958** (other than land in an identified folio under that Act) unless, at the date of the making of the contract, the person is—
 - (a) the registered proprietor of the land; or

- (b) presently entitled to become the registered proprietor of the land; or
- (c) empowered by or under an Act to execute a registrable transfer of the land.

29C Exceptions to prohibition

Section 29B does not prevent a person from selling land under a terms contract if—

- (a) the person has first obtained the consent of an arbitrator to enter into the contract; or
- (b) the contract is of a prescribed class and is entered into in accordance with the regulations.

S. 29C
inserted by
No. 6/2008
s. 33.

29D When is a person presently entitled to become the registered proprietor?

- (1) For the purposes of section 29B(2), a person is not presently entitled to become the registered proprietor of land unless the person is, at the date of making the relevant contract, entitled to be registered as proprietor under—
 - (a) one or more registrable instruments lodged in the Office of Titles; or
 - (b) one or more applications under Division 2 of Part IV of the **Transfer of Land Act 1958** lodged in the Office of Titles.
- (2) For the purposes of this section, an instrument or application that is, at the relevant time, lodged in the Office of Titles is deemed to be and always to have been registrable despite any defect in the instrument or application if—
 - (a) the instrument is registered or the application is granted without having been returned by the Registrar or withdrawn from the Office of Titles; or

S. 29D
inserted by
No. 6/2008
s. 33.

- (b) the Registrar certifies in writing that he or she is satisfied that the defect was not of a substantial nature and that it has been remedied.

S. 29E
inserted by
No. 6/2008
s. 33.

29E Mistakes or mis-statements as to description

- (1) A failure to comply with section 29B in respect of land agreed to be sold under a terms contract because of a mistake or mis-statement in the contract relating to the description, measurement or area of the land agreed to be sold is to be disregarded for the purposes of this Act unless it is a material mistake or mis-statement.
- (2) Any dispute as to whether a failure is to be disregarded under subsection (1) may be determined by an arbitrator.
- (3) In this section *material mistake or mis-statement* means a mistake or mis-statement that would entitle the purchaser to be discharged from the contract irrespective of the provisions of this Act.

S. 29EA
inserted by
No. 14/2019
s. 20.

29EA Additional prohibited terms contracts

A person must not knowingly sell any residential land (other than residential land that is agricultural land) under a terms contract where the sale price of the land is less than the prescribed amount.

Penalty: For a natural person, 240 penalty units or imprisonment for 2 years or both;

For a body corporate, 1200 penalty units.

29EB Offence to arrange, broker or induce certain terms contracts

S. 29EB
inserted by
No. 14/2019
s. 20.

- (1) A person must not knowingly arrange or broker the sale of any residential land (other than residential land that is agricultural land) under a terms contract where the sale price of the land is less than the prescribed amount.

Penalty: For a natural person, 240 penalty units or imprisonment for 2 years or both;

For a body corporate, 1200 penalty units.

- (2) A person must not knowingly induce another person to enter into a sale of any residential land (other than residential land that is agricultural land) under a terms contract where the sale price of the land is less than the prescribed amount.

Penalty: For a natural person, 240 penalty units or imprisonment for 2 years or both;

For a body corporate, 1200 penalty units.

29EC Offence to advertise certain terms contracts

S. 29EC
inserted by
No. 14/2019
s. 20.

A person must not knowingly advertise the sale of any residential land (other than residential land that is agricultural land) under a terms contract where the sale price of the land is less than the prescribed amount.

Penalty: For a natural person, 120 penalty units;

For a body corporate, 500 penalty units.

S. 29F
inserted by
No. 6/2008
s. 33.

29F Purchaser may avoid prohibited terms contract

- (1) Except where otherwise expressly provided, if a terms contract is entered into in contravention of this Act—
 - (a) the contract is voidable by the purchaser at any time before completion of the contract by giving a signed written notice to the vendor; and
 - (b) if the contract is avoided, a person is entitled to recover any money paid by that person under that contract.
- (2) A terms contract is not voidable by the purchaser if a court is satisfied that—
 - (a) the vendor has acted honestly and reasonably and ought fairly to be excused for the contravention; and
 - (b) the purchaser is substantially in as good a position as if all the relevant provisions of this Act had been complied with.

S. 29F(2A)
inserted by
No. 14/2019
s. 21(2).

- (2A) Subsection (2) does not apply if the land that is the subject of the contract is residential land (other than residential land that is agricultural land), the sale price of which is less than the prescribed amount.

S. 29F(3)
amended by
No. 14/2019
s. 21(3).

- (3) Despite subsection (1), if a terms contract is entered into in contravention of this Act and is avoided by the purchaser before the completion of the contract, the purchaser is liable to pay a fair market rent for the period during which the purchaser was—
 - (a) in actual possession of the land; or
 - (b) entitled to the receipt of the rents and profits of the land.

29G Certain provisions of terms contract void

A provision in a terms contract or in any other document under which any right, conferred by this Act on the purchaser under the terms contract, is excluded, modified or restricted is void.

S. 29G
inserted by
No. 6/2008
s. 33.

Subdivision 3—Transfer and mortgage back

29H Purchaser may call for a transfer on giving a mortgage back

- (1) A purchaser under a terms contract who is not in default under the contract may require the vendor to convey or transfer the land to the purchaser freed and discharged from all mortgages.
- (2) The power under subsection (1) may be exercised at any time after acceptance of title and before payment in full of the purchase money.
- (3) A requirement under subsection (1) must be made by written notice served on the vendor.
- (4) The power to require the vendor to convey or transfer land is conditional on the purchaser at the same time executing a mortgage or mortgages in favour of the vendor, or any other person the vendor requires, to secure the payment of all money that would have become payable by the purchaser under the contract if the mortgage had not been executed.
- (5) If land sold under a terms contract is subject to a mortgage or mortgages and the terms and conditions of the mortgage or mortgages are not more onerous than the terms and conditions under the contract, the vendor may comply with a requirement under subsection (1) by transferring the land subject to the existing mortgage or mortgages.

S. 29H
inserted by
No. 6/2008
s. 33.

S. 29H(4)
amended by
No. 63/2010
s. 58.

- (6) The power of the vendor under subsection (5) is conditional on the purchaser executing a mortgage to secure the amount that should be payable to the vendor having regard to the liabilities to be assumed by the purchaser under the existing mortgage or mortgages.
- (7) This section applies to a terms contract entered into before or after the commencement of Part 6 of the **Consumer Credit (Victoria) and Other Acts Amendment Act 2008**.

S. 29I
inserted by
No. 6/2008
s. 33.

29I What must the mortgage provide

- (1) The mortgage required under section 29H to be executed must—
 - (a) contain all the powers and covenants on the part of the mortgagor that are usual in mortgages of land that is similar in kind to the land that is the subject of the relevant terms contract; and
 - (b) fully accord with and provide for observance of all obligations of the purchaser under the terms contract; and
 - (c) be prepared at the cost of the purchaser and registered under the **Transfer of Land Act 1958**.
- (2) If, in compliance with a requirement made by a purchaser under section 29H, a mortgage is accepted, the mortgage is deemed to be a proper mortgage and to comply with subsections (1)(a) and (1)(b).

29J Failure of vendor to comply with requirement

S. 29J
inserted by
No. 6/2008
s. 33.

- (1) If a purchaser serves a notice on a vendor under section 29H and the vendor, without lawful excuse, fails to convey or transfer the land to the purchaser—
 - (a) the vendor is deemed to have breached a condition of the terms contract and the purchaser is entitled to all civil remedies for that breach; and
 - (b) the vendor is guilty of an offence and liable to a penalty of not more than 60 penalty units, in the case of a natural person or 300 penalty units, in the case of a body corporate.
- (2) In this section a lawful excuse includes where the vendor disputes in good faith the purchaser's entitlement to serve the notice.

29K Subdivision to apply despite Trustee Act 1958 and other Acts

S. 29K
inserted by
No. 6/2008
s. 33.

This Subdivision applies despite anything in the **Trustee Act 1958** or in any other Act (other than the Charter of Human Rights and Responsibilities).

29L Arbitrator may determine questions

S. 29L
inserted by
No. 6/2008
s. 33.

Any question as to the sufficiency of any instrument of transfer, conveyance or mortgage submitted pursuant to this Subdivision is, in the absence of agreement between the parties, to be determined by an arbitrator.

Subdivision 4—Mortgages and terms contracts

S. 29M
inserted by
No. 6/2008
s. 33.

29M Restrictions on sale of land

If land is subject to a mortgage, the mortgagor must not sell the land under a terms contract unless—

- (a) the mortgage relates only to that land; and
- (b) the contract expressly states that the land is subject to a mortgage; and
- (c) the contract provides that the consideration for the sale of the land is to be satisfied, to the extent of any mortgage money owing at the date on which the purchaser is entitled to possession or receipt of the rents and profits of the land sold, by the purchaser assuming as from that date the obligations of the mortgagor under the mortgage; and
- (d) the contract gives the particulars of the mortgage referred to in Schedule 1.

S. 29N
inserted by
No. 6/2008
s. 33.

29N Purchaser may avoid contract

If a terms contract is entered into in contravention of section 29M—

- (a) the contract is voidable by the purchaser at any time before the completion of the contract; and
- (b) the vendor is guilty of an offence and liable to a penalty of not more than 60 penalty units, in the case of a natural person or 300 penalty units, in the case of a body corporate.

29O Exception if mortgage to be discharged

S. 29O
inserted by
No. 6/2008
s. 33.

- (1) Section 29M does not apply to the sale of land under a terms contract if the contract provides that—
- (a) any mortgage affecting the land sold is to be discharged as to that land before the purchaser becomes or on the purchaser becoming entitled under the contract to possession or to the receipt of the rents and profits; and
 - (b) the deposit and all other money payable under the contract (other than any money payable in excess of the amount required to discharge the mortgage) are to be paid to a legal practitioner, conveyancer or a licensed estate agent to be applied in or towards discharging the mortgage.
- (2) If a terms contract provides for the matters in subsection (1) and the mortgage is not discharged within 90 days of the making of the contract and the purchaser is not in default under the contract—
- (a) the contract is voidable by the purchaser at any time before the mortgage is discharged; and
 - (b) if the contract is avoided, the purchaser is entitled to recover all money paid under the contract.

29P Land subject to a terms contract not to be mortgaged by vendor

S. 29P
inserted by
No. 6/2008
s. 33.

The vendor under a terms contract must not mortgage the land that is subject to the contract.

S. 29Q
inserted by
No. 6/2008
s. 33.

29Q Vendor may require purchaser to execute mortgage

- (1) A vendor may, by written notice to the purchaser, require the purchaser—
 - (a) to take a transfer or conveyance of any land subject to a terms contract; and
 - (b) at the vendor's expense, to execute any mortgage or mortgages in favour of the vendor and other persons that the vendor may require.
- (2) The obligations of the purchaser under the mortgage or mortgages referred to in subsection (1) must be not more onerous to the purchaser than the obligations of the purchaser under the terms contract.

S. 29R
inserted by
No. 6/2008
s. 33.

29R Vendor to advance amount for duty payable

- (1) Subject to subsection (2), if the purchaser to whom notice is given under section 29Q requires, the vendor must advance to the purchaser an amount equal to the duty payable by the purchaser under the **Duties Act 2000** on the transfer or conveyance.
- (2) The vendor is only required to advance the amount if the purchaser agrees to the amount advanced being added to the principal sum secured by the mortgage or by one of the mortgages specified by the vendor (as the case requires).

S. 29S
inserted by
No. 6/2008
s. 33.

29S Contravention of mortgage requirements

- (1) If land is mortgaged in contravention of section 29P, 29Q or 29R—
 - (a) the terms contract is voidable by the purchaser at any time before the completion of the contract; and

- (b) the vendor is guilty of an offence and liable to a penalty of not more than 60 penalty units, in the case of a natural person or 300 penalty units, in the case of a body corporate; and
 - (c) if the mortgagee had actual or constructive notice of the interest of the purchaser under the terms contract—
 - (i) the mortgagee is not entitled to exercise the mortgagee's remedies under the mortgage; and
 - (ii) the mortgagee must execute a proper discharge of the mortgage in respect of the land sold and obtain registration of that discharge; and
 - (iii) any amount paid by the mortgagee to the vendor may be recovered by the mortgagee from the vendor.
- (2) If land under the operation of the **Transfer of Land Act 1958** is mortgaged in contravention of section 29P, 29Q or 29R—
- (a) on the registration of a transfer in accordance with the section 77 of the **Transfer of Land Act 1958**—
 - (i) the title of the purchaser from the mortgagee is not impeachable on the ground that the power of sale was exercised in contravention of this section; and
 - (ii) for the purposes of Part III of the **Transfer of Land Act 1958**, the purchaser from the mortgagee is deemed to have dealt with the registered proprietor of the land; and

- (b) the purchaser under the terms contract has a remedy in damages against the mortgagee for exercising the power of sale if the mortgagee had actual or constructive notice of the interest of the purchaser; and
- (c) Division 9 of Part IV of the **Transfer of Land Act 1958** applies, except so far as it is inconsistent with the express provisions of this section.

S. 29T
inserted by
No. 6/2008
s. 33.

29T Failure by purchaser to comply with notice

- (1) If a notice in writing has been served on a purchaser by a vendor under section 29Q and the purchaser, without lawful excuse, fails to comply with the notice—
 - (a) the purchaser is deemed to have breached a condition of the contract and the vendor is entitled to all civil remedies for that breach; and
 - (b) the purchaser is guilty of an offence and liable to a penalty of not more than 60 penalty units, in the case of a natural person or 300 penalty units, in the case of a body corporate.
- (2) In this section a lawful excuse includes where the purchaser disputes in good faith the terms of the mortgage.

S. 29U
inserted by
No. 6/2008
s. 33.

29U Arbitrator may determine questions

Any question as to the sufficiency of any transfer, conveyance or mortgage submitted pursuant to this Subdivision must, in the absence of agreement between the parties, be determined by an arbitrator.

29V Constructive notice

**S. 29V
inserted by
No. 6/2008
s. 33.**

- (1) For the purposes of section 29S, a mortgagee is deemed not to have constructive notice of the interest of a purchaser under a terms contract unless notice of the interest of the purchaser under the terms contract would have come to the mortgagee's knowledge if the mortgagee had made—
- (a) a proper inspection of the relevant land; and
 - (b) such inquiries as ought reasonably to be made by the mortgagee of the mortgagor as to the rights of any person in possession of the relevant land; and
 - (c) inquiries of the municipal council of the municipal district in which the relevant land is situated as to who is shown on the rate book as owner of the relevant land; and
 - (d) such searches, inquiries and inspections in the Office of the Registrar of Titles and Registrar-General as reasonably ought to have been made by the mortgagee.
- (2) Nothing in subsection (1) limits or affects the operation of section 42(2)(e) of the **Transfer of Land Act 1958**.

Subdivision 5—Restrictions on legal practitioners and conveyancers

Pt 1 Div. 4
Subdiv. 5
(Heading)
amended by
No. 23/2016
s. 34.

29W Legal practitioner or conveyancer not to act for both vendor and purchaser under a terms contract

S. 29W
(Heading)
amended by
No. 23/2016
s. 35(1).

S. 29W
inserted by
No. 6/2008
s. 33.

S. 29W(1)
amended by
No. 23/2016
s. 35(2).

- (1) A legal practitioner or conveyancer whose principal place of business is within a 50 kilometre radius of the intersection of Elizabeth and Bourke Streets in Melbourne must not act for both vendor and purchaser under a terms contract.

Penalty: 60 penalty units.

S. 29W(2)
amended by
No. 23/2016
s. 35(2).

- (2) If a legal practitioner or conveyancer is prohibited under subsection (1) from acting for one party to a terms contract, a legal practitioner or conveyancer who is in partnership with that legal practitioner or conveyancer, or any person employed by that legal practitioner or conveyancer must not act for that party.

Penalty: 60 penalty units.

S. 29W(3)
amended by
No. 23/2016
s. 35(3).

- (3) If a legal practitioner or conveyancer contravenes this section, the purchaser for whom the legal practitioner or conveyancer has acted may rescind the contract at any time before the purchaser becomes entitled to possession or to the receipt of rents and profits.

(4) Despite subsection (3), the purchaser may not rescind the contract if the court is satisfied that—

(a) the legal practitioner or conveyancer has acted honestly and reasonably and ought fairly to be excused for the contravention; and

**S. 29W(4)(a)
amended by
No. 23/2016
s. 35(4).**

(b) the purchaser is substantially in as good a position as if all the relevant provisions of this section had been complied with.

(5) Any provision in any contract for the sale of land or other document under which any provision of this section is excluded, modified or rescinded is void.

(6) This section does not apply if any of the parties to the transaction are related to each other.

(7) For the purposes of subsection (6) a person is related to another person if the first-mentioned person is—

(a) the spouse, domestic partner, brother, sister, parent, child, grand-parent, grand-child, uncle, aunt, nephew or niece; or

(b) the spouse or domestic partner of a brother, sister, parent, child, grand-parent, grand-child, uncle, aunt, nephew or niece—

of the second-mentioned person.

Pt 1 Div. 5
(Heading and
ss 29WA–
29WG)
inserted by
No. 14/2019
s. 22.

Division 5—Rent-to-buy arrangements

S. 29WA
inserted by
No. 14/2019
s. 22.

29WA Application of Division

This Division does not apply to—

- (a) a rent-to-buy arrangement that involves a contract entered into by—
 - (i) the Chief Executive Officer, Homes Victoria (within the meaning of section 4(1) of the **Housing Act 1983**); or
 - (ii) a registered housing association within the meaning of the **Housing Act 1983**; or
 - (iii) a prescribed person or class of person; or
- (b) a rent-to-buy arrangement that complies with the requirements prescribed under section 17(2).

S. 29WA(a)(i)
amended by
Nos 40/2022
s. 58, 6/2024
s. 106.

S. 29WB
inserted by
No. 14/2019
s. 22.

29WB Definitions

In this Division—

purchaser includes a person to whom a right is conferred, or on whom an obligation is imposed, to purchase residential land under a rent-to-buy arrangement;

vendor includes a person on whom an obligation is imposed to sell, or who offers to sell, residential land under a rent-to-buy arrangement.

29WC Prohibition on rent-to-buy arrangements

A person must not knowingly sell any residential land under a rent-to-buy arrangement.

Penalty: For a natural person, 240 penalty units or imprisonment for 2 years or both;
For a body corporate, 1200 penalty units.

S. 29WC
inserted by
No. 14/2019
s. 22.

29WD Offence to arrange, broker or induce rent-to-buy arrangement

- (1) A person must not knowingly arrange or broker the sale of any residential land under a rent-to-buy arrangement.

Penalty: For a natural person, 240 penalty units or imprisonment for 2 years or both;
For a body corporate, 1200 penalty units.

- (2) A person must not knowingly induce another person to enter into the sale of any residential land under a rent-to-buy arrangement.

Penalty: For a natural person, 240 penalty units or imprisonment for 2 years or both;
For a body corporate, 1200 penalty units.

S. 29WD
inserted by
No. 14/2019
s. 22.

29WE Offence to advertise rent-to-buy arrangements

A person must not knowingly advertise the sale of any residential land under a rent-to-buy arrangement.

Penalty: For a natural person, 120 penalty units;
For a body corporate, 500 penalty units.

S. 29WE
inserted by
No. 14/2019
s. 22.

S. 29WF
inserted by
No. 14/2019
s. 22.

29WF Avoidance of certain rent-to-buy arrangements

- (1) A purchaser of residential land under a rent-to-buy arrangement may avoid a contract that is part of the arrangement by giving notice to the vendor.
- (2) A notice under subsection (1)—
 - (a) may be given at any time before completion of the contract; and
 - (b) must be in writing and signed by the purchaser.
- (3) If a rent-to-buy arrangement involves 2 or more contracts and a purchaser avoids a contract that is part of the arrangement, all of the contracts that are part of the arrangement are void.

S. 29WG
inserted by
No. 14/2019
s. 22.

29WG Return of money paid under contract to purchaser

If a contract has been avoided by the purchaser under section 29WF, the purchaser is entitled to the return of all money paid by the purchaser under that contract and under any other contract in the rent-to-buy arrangement, except for a sum which represents a fair market rent for any period for which the purchaser occupied the land.

Pt 1 Div. 6
(Heading and
ss 29WH,
29WI)
inserted by
No. 14/2019
s. 22.

Division 6—Options to purchase

S. 29WH
inserted by
No. 14/2019
s. 22.

29WH Options to purchase

- (1) A person (the *vendor*) must not sell to another person (the *purchaser*) an option to purchase land under a land banking scheme, except as provided for in this section.

- (2) Subsection (1) does not apply to—
 - (a) an option to purchase land under a land banking scheme that is a registered managed investment scheme; or
 - (b) an option to purchase land under a land banking scheme where the option is a financial product issued by the holder of an Australian financial services licence.
- (3) The money payable by the purchaser for the option must be paid to a legal practitioner, conveyancer or licensed estate agent acting for the vendor, to be held on trust for the purchaser until the earlier of—
 - (a) the registration of a plan of subdivision in respect of the land or the lot; or
 - (b) the expiry of the date by which the option must be exercised.
- (4) The agreement between the vendor and the purchaser in respect of an option to purchase land under a land banking scheme must provide that the money paid by the purchaser for the option is to be held on trust in accordance with subsection (3).
- (5) The agreement in respect of the option to purchase may be rescinded by the purchaser if subsection (3) or (4) is not complied with.
- (6) The vendor must notify the purchaser of the registration of a plan of subdivision in respect of the land under a land banking scheme.
- (7) Despite anything to the contrary in the agreement in respect of the option to purchase, the agreement expires if the event triggering the purchaser's right to exercise the option does not occur within 5 years of the entering into of the agreement.

- (8) The purchaser is entitled to the immediate return of any money paid under the agreement in respect of the option to purchase if—
- (a) the purchaser rescinds the agreement under subsection (5) or otherwise; or
 - (b) the agreement has expired under subsection (7) or otherwise; or
 - (c) the event triggering the purchaser's right to exercise the option does not otherwise occur.

S. 29WI
inserted by
No. 14/2019
s. 22.

29WI Offence to fail to transfer money

A vendor must not fail to transfer any money paid by a purchaser for an option to purchase land under a land banking scheme to a legal practitioner, conveyancer or licensed estate agent in accordance with section 29WH(3).

Penalty: For a natural person, 240 penalty units or imprisonment for 2 years or both;
For a body corporate, 1200 penalty units.

Part II—Miscellaneous provisions

Pt 2
(Heading and
ss 23–25)
repealed by
No. 7332
s. 4(Sch. 2),
new Pt 2
(Heading and
ss 30–36)
inserted by
No. 9858 s. 3.

30 Definitions

S. 30
inserted by
No. 9858 s. 3.

- (1) In this Part unless inconsistent with the context or subject-matter—

business day means any day except—

- (a) a Saturday or Sunday; or
- (b) any other day the whole or any part of which is observed as a public holiday throughout Victoria;

deposit moneys has the same meaning as in Division 3 of Part I;

* * * *

S. 30(1) def. of
estate agent
inserted by
No. 13/2017
s. 19,
repealed by
No. 14/2019
s. 23.

dwelling-house includes a flat or unit and also includes outbuildings fences and other appurtenances to a house flat or unit;

* * * *

S. 30(1) def. of
metropolitan area
inserted by
No. 42/1989
s. 5(1)(a),
substituted by
No. 85/2006
s. 173(Sch. 1
item 12.1),
repealed by
No. 33/2014
s. 3(2).

Sale of Land Act 1962
No. 6975 of 1962
Part II—Miscellaneous provisions

S. 30(1) def. of
*planning
instrument*
amended by
No. 45/1987
s. 205(Sch.
item 123),
repealed by
No. 33/2014
s. 3(2).

* * * *

S. 30(1) def. of
*prescribed
amount*
inserted by
No. 42/1989
s. 6(a)(ii),
repealed by
No. 41/2003
s. 4(a).

* * * *

purchaser includes any person acting as agent for
the purchaser or a nominee of the purchaser;

rescission or any derivative thereof in relation to a
contract, means avoidance of the contract as
from its beginning;

S. 30(1) def. of
*residential
land*
repealed by
No. 42/1989
s. 6(a)(i).

* * * *

S. 30(1) def. of
*section 32
statement*
inserted by
No. 33/2014
s. 3(1).

section 32 statement means a statement required
to be given by a vendor under section 32 in
accordance with Division 2;

S. 30(1) def. of
solicitor
repealed by
No. 35/1996
s. 453(Sch. 1
item 73.8).

* * * *

vendor includes any person acting as agent for the
vendor.

- (2) In this Part a reference to a dwelling-house also includes a reference to a dwelling-house which is in the course of being built.

* * * * *

S. 30(3)–(5)
inserted by
No. 85/2006
s. 173(Sch. 1
item 12.2),
repealed by
No. 33/2014
s. 3(3).

Division 1—Cooling-off periods

31 Power of purchaser to terminate a contract for sale of land

S. 31
inserted by
No. 9858 s. 3.

- (1) This section applies to a contract for the sale of land other than—
- (a) land used primarily for industrial or commercial purposes; and
 - (b) land which is more than 20 hectares and is used primarily for farming—
- together with chattels (if any).
- (2) Where a purchaser under a contract for the sale of land signs that contract he may at any time before the expiration of three clear business days after he has signed the contract give notice to the vendor that he wishes to terminate the contract and where he has signed that notice and given it in accordance with the provisions of this section the contract shall be terminated.
- (3) A notice under subsection (2) must, within 3 clear business days after the purchaser has signed the contract—
- (a) be given to one of the following persons—
 - (i) the vendor;
 - (ii) an agent of the vendor;

S. 31(1)
amended by
Nos 42/1989
s. 6(b),
41/2003
s. 4(b).

S. 31(3)
substituted by
No. 13/2017
s. 20.

- (iii) an estate agent engaged or appointed by the vendor to sell the land; or
- (b) be left at one of the following addresses—
 - (i) the address for service of the vendor specified in the contract;
 - (ii) the address of the vendor's agent;
 - (iii) the address of the estate agent engaged or appointed by the vendor to sell the land.
- (4) Where a contract for the sale of land has been terminated in accordance with the provisions of this section the purchaser shall be entitled to the return of all moneys paid by him under that contract except for the sum of \$100 or 0·2 per centum of the purchase price (whichever is the greater) which may be retained by the vendor.
- (5) This section does not apply to a contract for the sale of land where—
 - (a) the sale is by publicly advertised auction;
 - (b) the land is sold—
 - (i) within three clear business days before the day on which a publicly advertised auction for the sale of that land is to be held;
 - (ii) on the day on which a publicly advertised auction for the sale of that land is held; or
 - (iii) within three clear business days after the day on which a publicly advertised auction for the sale of that land was held;
 - (c) the vendor and purchaser have previously entered into a contract for the sale of the same land in substantially the same terms;

S. 31(5)
amended by
No. 10087
s. 3(1)(Sch. 1
item 216).

(d) the purchaser is an estate agent within the meaning of the **Estate Agents Act 1980** or a corporate body.

S. 31(5)(d)
amended by
No. 63/2010
s. 59(a).

* * * * *

S. 31(5)(e)
amended by
No. 35/1996
s. 453(Sch. 1
item 73.9),
repealed by
No. 63/2010
s. 59(b).

(6) A contract to which this section applies shall contain a conspicuous notice advising the purchaser that he may before the expiration of three clear business days after he signs the contract give notice that he wishes to terminate the contract.

(7) Where a contract to which this section applies does not contain the notice required by subsection (6) the purchaser may rescind that contract at any time before he becomes entitled to possession or to the receipt of rents and profits.

(8) Any provision in the contract or in any other document whereby any right conferred by this section on the purchaser is excluded, modified or restricted shall be void and of no effect.

31A Validation of notice given to estate agent

S. 31A
inserted by
No. 13/2017
s. 21.

(1) If, on or before the commencement of section 20 of the **Consumer Acts Amendment Act 2017**, a notice for the termination of a contract for the sale of land was given to an estate agent in accordance with section 31(3) as amended by section 20 of the **Consumer Acts Amendment Act 2017**, that notice was, and is always taken to have been, validly given as if section 31(3) as so amended had been in operation when the notice was given.

- (2) Subsection (1) does not affect the rights of the parties in—
- (a) the proceeding known as *Tan v Russell* (No. 93 of 2016) in the Supreme Court of Victoria; or
 - (b) any other proceeding commenced on or before the commencement of section 20 of the **Consumer Acts Amendment Act 2017** which concerns the validity of a notice given to an estate agent under section 31(3) for the termination of a contract for the sale of land.

Pt 2 Div. 2
(Heading and
ss 32, 33)
amended²,
substituted as
Pt 2 Div. 2
(Heading and
ss 32–32P) by
No. 33/2014
s. 4.

Division 2—Section 32 statement

S. 32
substituted by
No. 33/2014
s. 4.

32 Statement of matters affecting land being sold

- (1) A vendor under a contract for the sale of land must give to a purchaser, before the purchaser signs the contract, a statement signed by the vendor that contains the matters and attaches the documents specified in this Division.
- (2) For the purposes of subsection (1), a vendor may sign the statement to be given to a purchaser under this section by electronic signature.

S. 32A
inserted by
No. 33/2014
s. 4.

32A Financial matters in respect of the land to be disclosed in section 32 statement

A section 32 statement must contain the following financial matters in respect of the land—

- (a) particulars of any mortgage (whether registered or unregistered) over the land, which is not to be discharged before the

- purchaser becomes entitled to possession or to the receipt of rents and profits, including the particulars specified in Schedule 1;
- (b) particulars of any charge (whether registered or not) over the land imposed by or under an Act to secure an amount due under that Act, including the amount owing under the charge;
- (c) in any case—
- (i) the amount of any rates, taxes, charges or other similar outgoings affecting the land and any interest payable on any part of those rates, taxes, charges or outgoings which is unpaid including any rates, taxes, charges or outgoings for which the purchaser may become liable in consequence of the sale and which the vendor might reasonably be expected to have knowledge of; or
- (ii) a statement that the total amount of those rates, taxes, charges or other similar outgoings and interest does not exceed the amount specified;
- (ca) in any case—
- (i) a statement of whether or not the land is tax reform scheme land within the meaning of the **Commercial and Industrial Property Tax Reform Act 2024**; and
- (ii) the AVPCC (within the meaning of the **Commercial and Industrial Property Tax Reform Act 2024**) most recently allocated to the land; and

S. 32A(ca)
inserted by
No. 16/2024
s. 63.

(iii) if the land is tax reform scheme land,
its entry date within the meaning of the
**Commercial and Industrial Property
Tax Reform Act 2024**;

(d) in the case of a terms contract where the
purchaser is obliged to make 2 or more
payments to the vendor after the execution
of the contract and before the purchaser is
entitled to a conveyance or transfer of the
land, the information set out in Schedule 2.

S. 32B
inserted by
No. 33/2014
s. 4.

**32B Insurance details in respect of the land to be
disclosed in section 32 statement**

A section 32 statement must contain the following
insurance details in respect of the land—

- (a) if the contract for the sale of the land does
not provide for the land to remain at the risk
of the vendor until the purchaser becomes
entitled to possession or receipt of rents and
profits, particulars of any policy of insurance
maintained by the vendor in respect of any
damage to or destruction of the land;
- (b) if there is a residence on the land which was
constructed within the preceding 6 years
and section 137B of the **Building Act 1993**
applies to the residence, particulars of any
required insurance under that Act applying
to that residence.

S. 32C
inserted by
No. 33/2014
s. 4.

**32C Matters relating to land use to be disclosed in
section 32 statement**

A section 32 statement must contain the following
matters in relation to the use of the land—

- (a) a description of any easement, covenant or
other similar restriction affecting the land
(whether registered or unregistered) and
particulars of any existing failure to comply

with the terms of that easement, covenant or restriction;

- (b) if the land is in an area that is designated as a bushfire prone area under section 192A of the **Building Act 1993**, a statement that the land is in such an area;
- (c) if there is no access to the property by road, a statement that there is no such access;
- (d) in the case of land to which a planning scheme applies a statement specifying—
 - (i) the name of the planning scheme;
 - (ii) the name of the responsible authority;
 - (iii) the zoning of the land;
 - (iv) the name of any planning overlay affecting the land.

S. 32C(b)
substituted by
No. 46/2018
s. 78.

32D Notices made in respect of land to be disclosed in section 32 statement

S. 32D
inserted by
No. 33/2014
s. 4.

A section 32 statement must contain the following details in respect of any notices made in respect of the land—

- (a) particulars of any notice, order, declaration, report or recommendation of a public authority or government department or approved proposal directly and currently affecting the land, being a notice, order, declaration, report, recommendation or approved proposal of which the vendor might reasonably be expected to have knowledge;
- (b) whether there are any notices, property management plans, reports or orders in respect of the land issued by a government department or public authority in relation to livestock disease or contamination by

agricultural chemicals affecting the ongoing use of the land for agricultural purposes;

- (c) particulars of any notice of intention to acquire served under section 6 of the **Land Acquisition and Compensation Act 1986**.

S. 32E
inserted by
No. 33/2014
s. 4.

32E Building permits issued in respect of land to be disclosed in section 32 statement

If there is a residence on the land, a section 32 statement must contain particulars of any building permit issued under the **Building Act 1993** in the preceding 7 years in relation to a building on the land.

S. 32F
inserted by
No. 33/2014
s. 4.

32F Information relating to any owners corporation to be disclosed in section 32 statement

- (1) If the land is affected by an owners corporation within the meaning of the **Owners Corporations Act 2006**, a vendor must—

(a) unless paragraph (b) applies—

(i) either—

(A) specify in the section 32 statement the information prescribed for the purposes of section 151(4)(a) of the **Owners Corporations Act 2006** relating to the owners corporation; or

(B) attach to the section 32 statement a copy of the current owners corporation certificate issued in respect of the land under section 151 of the **Owners Corporations Act 2006**; and

(ii) attach to the section 32 statement a copy of the documents specified in section 151(4)(b)(i) and (iii) of the **Owners Corporations Act 2006** that

are required to accompany an owners corporation certificate under that Act; or

(b) if the owners corporation is inactive, specify in the section 32 statement that the owners corporation is inactive.

(2) In this section a reference to an owners corporation that is inactive includes an owners corporation that has not, in the previous 15 months—

- (a) had an annual general meeting; and
- (b) fixed any fees; and
- (c) held any insurance.

32G Growth areas infrastructure contribution details to be disclosed in section 32 statement

S. 32G
inserted by
No. 33/2014
s. 4.

(1) A section 32 statement must specify whether the land, in accordance with a work-in-kind agreement (within the meaning of Part 9B of the **Planning and Environment Act 1987**), is—

- (a) land that is to be transferred under the agreement; or
- (b) land on which works are to be carried out under the agreement (other than Crown land); or
- (c) land in respect of which a growth areas infrastructure contribution is imposed.

(2) The following certificates or notices must be attached to a section 32 statement in the case of land in respect of which there is a GAIC recording (within the meaning of Part 9B of the **Planning and Environment Act 1987**)—

- (a) any certificate of release from liability to pay a growth areas infrastructure contribution

- imposed in respect of the land issued under that Part;
- (b) any certificate of deferral of the liability to pay the whole or part of a growth areas infrastructure contribution imposed in respect of the land issued under that Part;
 - (c) any certificate of exemption from liability to pay a growth areas infrastructure contribution imposed in respect of the land issued under that Part;
 - (d) any certificate of staged payment approval;
 - (e) any certificate of no GAIC liability relating to the land issued under that Part;
 - (f) any notice given under that Part providing evidence of the grant of a reduction of the whole or part of the liability to pay a growth areas infrastructure contribution imposed in respect of the land or an exemption from that liability;
 - (g) if no certificate or notice of a type specified in paragraphs (a) to (f) is provided, a GAIC certificate relating to the land issued under that Part.

S. 32H
inserted by
No. 33/2014
s. 4.

32H Disclosure of non-connected services in section 32 statement

A section 32 statement must specify if any of the following services are not connected to the land—

- (a) electricity supply;
- (b) gas supply;
- (c) water supply;
- (d) sewerage;
- (e) telephone services.

**32I Evidence of title required to be disclosed in
section 32 statement**

S. 32I
inserted by
No. 33/2014
s. 4.

The following documents must be attached to a
section 32 statement—

- (a) in the case of land under the **Transfer of Land Act 1958**, a copy of the Register Search Statement and the document, or part of the document, referred to as the diagram location in the Register Search Statement that identifies the land and its location;
- (b) in any other case, a copy of—
 - (i) the last conveyance in the chain of title to the land; or
 - (ii) any other document which gives evidence of the vendor's title to the land;
- (c) if the vendor is not the registered proprietor of the land or the owner of the estate in fee simple in the land, evidence of the vendor's right or power to the sell the land;
- (d) in the case of land that is subject to a subdivision—
 - (i) if the plan of subdivision has not been registered, a copy of the plan of subdivision which has been certified by the relevant municipal council; or
 - (ii) if the plan of subdivision has not yet been certified, a copy of the latest version of the plan;
- (e) in the case of land that is part of a staged subdivision within the meaning of section 37 of the **Subdivision Act 1988**—

- (i) if the land is in the second or a subsequent stage, a copy of the plan for the first stage; and
 - (ii) details of any requirements in a statement of compliance relating to the stage in which the land is included that have not been complied with; and
 - (iii) details of any proposals relating to subsequent stages that are known to the vendor; and
 - (iv) a statement of the contents of any permit under the **Planning and Environment Act 1987** authorising the staged subdivision;
- (f) in the case of land that is subject to a subdivision and in respect of which a further plan within the meaning of the **Subdivision Act 1988** is proposed—
- (i) if the later plan has not been registered, a copy of the plan which has been certified by the relevant municipal council; or
 - (ii) if the later plan has not yet been certified, a copy of the latest version of the plan.

S. 32J
inserted by
No. 33/2014
s. 4.

32J Information required for a section 32 statement contained in a certificate, notice, policy of insurance or other document

- (1) If any information required to be contained in a section 32 statement is specified in a certificate, notice or other document issued by a relevant authority, the vendor may attach that certificate, notice or other document (or a copy of that certificate, notice or other document) to the section 32 statement for the purpose of

complying with the relevant provision of this Division requiring the information.

- (2) If the information required under section 32B is contained in a policy of insurance, the vendor may attach a copy of the policy or an extract of the policy to the statement for the purpose of complying with that section.

32K Supply of false information or failure to supply information in section 32 statement or failure to supply section 32 statement may result in rescission

**S. 32K
inserted by
No. 33/2014
s. 4.**

- (1) This section applies if a vendor—
- (a) supplies false information to a purchaser in a section 32 statement or in any certificates, notices, policies or other documents attached to a section 32 statement for the purposes of complying with the requirements of this Division; or
 - (b) fails to supply all the information required to be supplied to a purchaser, either in a section 32 statement or attached to the section 32 statement, as required by this Division; or
 - (c) fails to give a purchaser a section 32 statement signed by the vendor before the purchaser signs the contract for the sale of land.
- (2) The purchaser may rescind any contract for the sale of land which has been entered into on the basis of information contained in the section 32 statement or attached to the section 32 statement at any time before the purchaser accepts title and becomes entitled to possession or to the receipt of rents and profits.

- (3) The purchaser may rescind any contract for the sale of land where the vendor fails to give the purchaser a section 32 statement before the purchaser signs the contract at any time before the purchaser accepts title and becomes entitled to possession or to the receipt of rents and profits.
- (4) Despite subsection (2) and (3), the purchaser may not rescind a contract for the sale of land if the court is satisfied that—
 - (a) the vendor has acted honestly and reasonably and ought fairly to be excused for the contravention; and
 - (b) the purchaser is substantially in as good a position as if all the relevant provisions of this Division had been complied with.

S. 32L
inserted by
No. 33/2014
s. 4.

32L Offence to provide false or incomplete information in section 32 statement or fail to provide statement

A vendor must not knowingly or recklessly—

- (a) supply false information to the purchaser in a section 32 statement or any certificate, notice, policy or other document attached to the section 32 statement that is required to be given under this Division; or
- (b) fail to supply all the information required to be given under this Division in the section 32 statement or any certificate, notice, policy or other document attached to the section 32 statement; or
- (c) fail to give a purchaser a section 32 statement signed by the vendor before the purchaser signs the contract for the sale of land.

Penalty: 300 penalty units in the case of a body corporate;
60 penalty units in any other case.

32M Other circumstance where purchaser may rescind contract of sale

S. 32M
inserted by
No. 33/2014
s. 4.

The purchaser may rescind a contract for the sale of land if, at any time before the purchaser accepts title and becomes entitled to possession or to the receipt of rents and profits, a notice of intention to acquire land has been served under section 6 of the **Land Acquisition and Compensation Act 1986** in respect of the land subject to the contract of sale.

32N Contract provision that excludes, modifies or restricts Division is void

S. 32N
inserted by
No. 33/2014
s. 4.

A provision in a contract for the sale of land that excludes, modifies or restricts any provision of this Division is void and of no effect.

32O Circumstance where vendor is not required to give purchaser another section 32 statement

S. 32O
inserted by
No. 33/2014
s. 4.

If a vendor and a purchaser have entered into a contract for the sale of land in respect of which a section 32 statement has been given and the vendor and purchaser enter into a subsequent contract in relation to the same land in substantially the same terms as the original contract, the vendor is not required, in respect of the subsequent contract, to give to the purchaser another section 32 statement.

32P Agreement to transfer forest carbon right not a contract for the sale of land

S. 32P
inserted by
No. 33/2014
s. 4.

To avoid doubt, an agreement to transfer a forest carbon right within the meaning of the **Climate Change Act 2010** is not a contract for the sale of land for the purposes of this Division.

Division 2A—Due diligence checklist

Pt 2 Div. 2A
(Heading and
ss 33–33C)
inserted by
No. 33/2014
s. 5.

New s. 33
inserted by
No. 33/2014
s. 5.

33 Definitions

In this Division—

S. 33 def. of
*licensed
estate agent*
repealed by
No. 14/2019
s. 24.

* * * * *

vacant residential land means any vacant land on
which the building of a residence is
permitted.

S. 33A
inserted by
No. 33/2014
s. 5.

33A What is a due diligence checklist?

A due diligence checklist is a checklist prepared
for prospective purchasers of vacant residential
land or land on which there is a residence to assist
purchasers in identifying information they may
wish to obtain in respect of the land for sale.

S. 33B
inserted by
No. 33/2014
s. 5.

33B Due diligence checklist to be made available

- (1) A vendor offering land for sale that is vacant
residential land or land on which there is a
residence must ensure that a due diligence
checklist is made available to any prospective
purchaser from the time the land is offered for
sale.

Penalty: 60 penalty units.

- (2) A vendor must ensure that the due diligence
checklist is in the form approved by the Director
of Consumer Affairs Victoria.

Penalty: 60 penalty units.

- (3) Subsections (1) and (2) do not apply to a vendor if the vendor has engaged a person who is a licensed estate agent to act for the vendor.
- (4) A person who is a licensed estate agent and acting for a vendor, offering land for sale that is vacant residential land or land on which there is a residence, must ensure that a due diligence checklist is made available to any prospective purchaser from the time the land is offered for sale.

Penalty: 60 penalty units.

- (5) A person who is a licensed estate agent and acting for a vendor, must ensure that the due diligence checklist is in the form approved by the Director of Consumer Affairs Victoria.

Penalty: 60 penalty units.

- (6) For the purposes of this section, a due diligence checklist is made available if—
- (a) copies of the due diligence checklist are on display or offered to prospective purchasers at any inspection held of the land; and
 - (b) any Internet site maintained by the vendor and any person acting as the licensed estate agent of the vendor where the land is offered for sale allows access to a copy of the due diligence checklist either directly or by linking to another Internet site where a copy may be obtained.

33C Due diligence checklist to be published on Internet

The Director of Consumer Affairs Victoria must publish a copy of the due diligence checklist approved by the Director under section 33B on the Internet site for Consumer Affairs Victoria.

**S. 33C
inserted by
No. 33/2014
s. 5.**

Division 3—Insurance

S. 34
inserted by
No. 9858 s. 3.

34 Power of purchaser to rescind contract where house destroyed

S. 34(1)
amended by
Nos 35/1996
s. 453(Sch. 1
item 73.11),
75/2006
s. 192(Sch. 2
item 5.9) (as
amended by
No. 17/2007
s. 32(3)).

- (1) Where a contract for the sale of land upon which there is a dwelling-house has been entered into, and where the dwelling-house is so destroyed or damaged as to be unfit for occupation as a dwelling-house, before the purchaser becomes entitled to possession or to the receipt of rents and profits he may, at his option, rescind the contract by notice in writing given to the vendor or his legal practitioner or conveyancer within fourteen days after the purchaser becomes aware of the destruction of or damage to the dwelling-house.
- (2) Upon rescission of a contract for the sale of land pursuant to this section—
 - (a) any moneys paid by the purchaser shall be refunded to him;
 - (b) any documents of title or transfer shall be returned to the vendor; and
 - (c) the provisions of section 35 shall not apply and the vendor and any other person entitled to benefit from any insurance policy shall be entitled to do so to the same extent as they would have been if the land had not been subject to the contract.
- (3) Any provision in any contract for the sale of land or other document whereby any provision of this section is excluded, modified or rescinded shall be void and of no effect.

35 Insurance held by vendor to enure for benefit of purchaser

**S. 35
inserted by
No. 9858 s. 3.**

- (1) During the period between the making of a contract for the sale of land and the purchaser becoming entitled to possession or to the receipt of rents and profits pursuant to the terms of the contract, any policy of insurance maintained by the vendor in respect of any damage to or destruction of any part of the land agreed to be sold pursuant to the contract shall in respect of the said land, to the extent that the purchaser is not entitled to be indemnified under any other policy of insurance, enure for the benefit of the purchaser as well as for the vendor and the purchaser shall be entitled to be indemnified by the insurer under any such insurance policy in the same manner and to the same extent as the vendor would have been if the land had not been subject to the contract.
- (2) It shall not be a defence or answer to any claim by the purchaser against the insurer made under subsection (1) hereof that the vendor otherwise would not be entitled to be indemnified by the insurer because the vendor has suffered no loss or has suffered diminished loss by reason of the fact that the vendor is entitled to be paid the purchase price or the balance thereof by the purchaser.
- (3) A policy of insurance shall not enure for the benefit of a purchaser under subsection (1) hereof if the insurer establishes that a prudent insurer would not have insured the purchaser against the risk covered by the policy.
- (4) At any time prior to the happening of the risk insured against an insurer made liable to a purchaser under subsection (1) may terminate that liability by giving notice of such termination to the purchaser in not less than three clear business days.

- (5) A notice under subsection (4) shall be in writing and shall be served upon the purchaser personally or in the case of a company by leaving it at the company's registered office.
- (6) The contract of insurance shall terminate at the expiration of the period specified in the notice.
- (7) The service of a notice under subsection (4) shall not affect the liability of the insurer to the vendor under the policy of insurance.
- (8) Where money becomes payable under a policy of insurance in respect of any damage to or destruction of part of the land agreed to be sold the money shall, on completion of the contract be held or receivable by the vendor on behalf of the purchaser and paid by the vendor to the purchaser on completion of the sale or as soon as the money is received by the vendor (whichever is the later).
- (9) Notwithstanding subsection (1) an insurer shall not be entitled to deny liability to the purchaser because of a fault on the part of the vendor by reason of which the vendor would not be entitled to make a claim under the policy.
- (10) This section—
 - (a) shall apply to a contract for the sale of land made after the commencement of section 3 of the **Sale of Land (Amendment) Act 1982**; and
 - (b) shall have effect notwithstanding any stipulation or term to the contrary contained in the contract of sale or any policy of insurance as referred to in subsection (1).
- (11) This section shall apply mutatis mutandis to a sale or exchange by order of a court.

36 Damage to land

Where land has been destroyed or damaged, the vendor may restore that damage and where the vendor does so before the purchaser becomes entitled to possession or to the receipt of rents and profits, the purchaser shall not be entitled to rely on the provisions of section 34 or 35.

S. 36
inserted by
No. 9858 s. 3.

Division 4—Public auctions

Pt 2 Div. 4
(Heading and
ss 37–48)
inserted by
No. 41/2003
s. 3.

37 This Division applies to publicly advertised auctions

For the purposes of this Division an auction is a public auction if it has been publicly advertised.

S. 37
inserted by
No. 41/2003
s. 3.

38 Dummy bidding prohibited

S. 38
inserted by
No. 41/2003
s. 3.

- (1) A vendor of land must not make a bid at a public auction of the land.

Penalty: In the case of a body corporate:
600 penalty units.

In any other case: 240 penalty units.

- (2) A person must not make a bid at a public auction of land knowing that the bid is being made on behalf of a vendor of the land.

Penalty: In the case of a body corporate:
600 penalty units.

In any other case: 240 penalty units.

- (3) For the purposes of subsection (2), a bid may be found to have been made on behalf of a vendor even though it is not made at the request of, or with the knowledge of, the vendor.

S. 38(6)
inserted by
No. 103/2004
s. 70(1).

- (4) Evidence that a person who made a bid at a public auction had the intention of benefiting the vendor in making the bid is evidence that the person made the bid on behalf of the vendor.
- (5) It is immaterial that a person making a bid in contravention of this section is not in Victoria at the time the bid is made.
- (6) Subsections (1) and (2) do not apply to a bid made by a vendor who is a co-owner of the land or by a person (other than the auctioneer of the land) on behalf of a vendor who is a co-owner of the land if—
 - (a) the bid was made to enable the vendor to purchase the interest of another co-owner in the land; and
 - (b) the conditions under which the auction is conducted permit the making of bids by a vendor to purchase the interest of another co-owner in the land; and
 - (c) before any bidding started, the auctioneer orally declared at the auction that a vendor may make bids to purchase the interest of a co-owner in the land.
- (7) In subsection (6), *co-owner* means a joint tenant, whether at law or in equity or a tenant in common, whether at law or in equity, of the land.

S. 38(7)
inserted by
No. 103/2004
s. 70(1).

S. 39
inserted by
No. 41/2003
s. 3.

39 Offences by auctioneers

- (1) The auctioneer of land at a public auction must not accept a bid at the auction if he or she knows that the bid was made by, or on behalf of, a vendor of the land.

Penalty: 240 penalty units.

- (2) The auctioneer of land at a public auction must not acknowledge the making of a bid at the auction if no bid was made.

Penalty: 240 penalty units.

- (3) Subsection (1) does not apply to a bid made in accordance with section 38(6).

S. 39(3)
inserted by
No. 103/2004
s. 70(2).

40 Offence to procure dummy bid

A person must not procure another person to make a bid at a public auction of land that is contrary to section 38.

S. 40
inserted by
No. 41/2003
s. 3.

Penalty: In the case of a body corporate:
600 penalty units.

In any other case: 240 penalty units.

41 Permissible vendor bids

- (1) Despite section 38(2), the auctioneer of land at a public auction may make a bid on behalf of a vendor of the land if—
- (a) the conditions under which the auction is conducted permit the making of the bid; and
 - (b) before any bidding started, the auctioneer orally declared at the auction that the conditions permit the making of the bid; and
 - (c) immediately before, or in the process of, making the bid, the auctioneer audibly states that the bid is being made on behalf of the vendor; and
 - (d) the bid is not made on behalf of a vendor who is a co-owner to enable the vendor to purchase the interest of a co-owner in the land.

S. 41
inserted by
No. 41/2003
s. 3.

S. 41(1)(c)
amended by
No. 103/2004
s. 70(3).

S. 41(1)(d)
inserted by
No. 103/2004
s. 70(4).

- (2) It is sufficient compliance with the requirement under subsection (1)(c) to identify a bid as a vendor bid if the auctioneer states "vendor bid" in making the bid.
- (3) It is not sufficient compliance with the requirement under subsection (1)(c) to identify a bid as a vendor bid if the auctioneer merely identifies the vendor by name without stating that the vendor is a vendor.

S. 42
inserted by
No. 41/2003
s. 3.

42 Offence to falsely acknowledge bid

A person at a public auction of land must not falsely claim to have made a bid, or falsely acknowledge that he or she made a bid.

Penalty: 240 penalty units.

S. 43
inserted by
No. 41/2003
s. 3.

43 Conditions of auctions to be made available before auction starts

Before a public auction of land starts, the auctioneer of the land must cause a copy of the conditions under which the auction is to be conducted to be available for inspection at the location where the auction is to take place by any person attending the auction.

Penalty: 60 penalty units.

S. 44
inserted by
No. 41/2003
s. 3.

44 Right to compensation if Division breached

- (1) A purchaser of land at a public auction is entitled to compensation from any person who fails to comply with this Division (other than section 47) for any loss or damage suffered by the purchaser as a result of that failure to comply.
- (2) An application for compensation under this section—
 - (a) must be lodged with the Victorian Civil and Administrative Tribunal; and

- (b) must be lodged before the second anniversary of the date of the auction.
- (3) If compensation is sought under this section from a vendor of the land and the Tribunal is satisfied that the application for compensation is frivolous, vexatious or without substance, it may order the applicant to pay compensation to the vendor for any loss or damage the vendor has suffered as a result of the application.
- (4) The power conferred by subsection (3) is in addition to any power the Tribunal has to order the payment of costs in relation to the application.

45 Contrary conditions are void

Any conditions applying to the sale of any land at public auction that are contrary to, or that purport to restrict or modify, any requirement imposed by or under this Division are void.

S. 45
inserted by
No. 41/2003
s. 3.

46 Last vendor bids must be identified if property passed in

- (1) This section applies if a public auction of land is held at which the land is not sold, and the last bid made before the auction stopped was a bid made by the auctioneer of the land on behalf of a vendor of the land.
- (2) In making any statement while marketing the land, a person must not state the amount of the last bid without also stating that the bid was a bid made on behalf of a vendor of the land.

Penalty: In the case of a body corporate:
600 penalty units.

In any other case: 240 penalty units.

S. 46
inserted by
No. 41/2003
s. 3.

(3) For the purposes of subsection (2), a statement is made while marketing land if—

- (a) it is made in an advertisement in respect of the land that is published, or caused to be published, by the person; or
- (b) it is made (whether orally or in writing) to a person as a prospective purchaser of the land.

(4) A person who advises another person of the amount of the last bid to enable that amount to be published must not knowingly fail to disclose to the other person that the bid was a bid made on behalf of a vendor of the land.

Penalty: In the case of a body corporate:
200 penalty units.

In any other case: 80 penalty units.

(5) A person who is a publisher of land auction sales results must not publish the fact that the land was passed in for the amount of the last bid without also stating that the bid was a bid made on behalf of a vendor of the land.

Penalty: In the case of a body corporate:
200 penalty units.

In any other case: 80 penalty units.

(6) It is a defence to a charge against subsection (2) or (5) if the person making the statement, or publishing the amount—

- (a) was not present at the auction; and
- (b) relied on a statement made by a person who purported to know what happened at the auction.

(7) It is sufficient compliance with subsection (2) or (5) if the amount is described as a "vendor bid".

47 Disruption of auction prohibited

S. 47
inserted by
No. 41/2003
s. 3.

- (1) This section applies to—
- (a) a person intending to make a bid on his or her own behalf, or on behalf of another person, at a public auction of land;
 - (b) a person acting on behalf of a person intending to make a bid at a public auction of land.
- (2) The person must not knowingly prevent or hinder any other person whom he or she knows or believes is an actual or potential rival bidder from attending, participating in, or bidding at, the auction.
- Penalty: 60 penalty units.
- (3) The person must not harass any other person whom he or she knows or believes is an actual or potential rival bidder with the intention of interfering with that other person's attendance at, participation in, or bidding at, the auction.
- Penalty: 60 penalty units.
- (4) The person must not induce, or attempt to induce, another person whom he or she knows or believes is an actual or potential rival bidder to not attend the auction, or to not make a bid at the auction.
- Penalty: 60 penalty units.
- (5) The person must not do any thing with the intention of preventing, causing a major disruption to, or causing the cancellation of, the auction.
- Penalty: 60 penalty units.
- (6) Subsection (5) is not intended to preclude a person at the auction from asking, in good faith, a reasonable number of questions about the land, the contract of sale and the conduct of the auction.

S. 48
inserted by
No. 41/2003
s. 3.

48 Regulations

- (1) The Governor in Council may make regulations for or with respect to—
 - (a) regulating the conduct of public auctions of land;
 - (b) prescribing standard rules for the conduct of public auctions of land;
 - (c) regulating signs and documents relating to public auctions of land;
 - (d) requiring the provision of specified information to potential purchasers of land that is to be sold at public auction;
 - (e) prescribing any other matter or thing authorised or required to be prescribed or necessary or convenient to be prescribed for the purposes of this Division.
- (2) The regulations—
 - (a) may be of general, or of specially limited, application;
 - (b) may differ according to differences in time, place or circumstance;
 - (c) may require a matter affected by the regulations to be—
 - (i) in accordance with a specified standard or specified requirement; or
 - (ii) approved by, or to the satisfaction of, a specified person or a specified class of person; or
 - (iii) as specified in both subparagraphs (i) and (ii);

- (d) may apply, adopt or incorporate any matter contained in any existing document either wholly, or partially, or as amended by the regulations;
- (e) may confer a discretionary authority or impose a duty on a specified person or a specified class of person;
- (f) may provide, in a specified case or class of case, for the exemption of people or things from any of the provisions of the regulations, whether unconditionally or on specified conditions, and either wholly or to the extent specified;
- (g) may impose a penalty not exceeding 20 penalty units for a contravention of the regulations.

Part IIA—Enforcement

Pt 2A
(Heading and
s. 48A)
inserted by
No. 103/2004
s. 71.

S. 48A
inserted by
No. 103/2004
s. 71,
amended by
Nos 17/2007
s. 36(Sch.
item 13),
2/2008
s. 60(Sch.
item 12),
72/2010
s. 48(Sch.
item 21),
substituted by
No. 21/2012
s. 239(Sch. 6
item 40.1).

S. 48A(2)
amended by
No. 50/2014
s. 28.

48A Application of Australian Consumer Law and Fair Trading Act 2012

- (1) Sections 125, 195 and 196 and Part 8.2 (except section 213) of the **Australian Consumer Law and Fair Trading Act 2012** extend and apply (with any necessary modifications) to this Act as if any reference in those provisions to the **Australian Consumer Law and Fair Trading Act 2012** were a reference to this Act.
- (2) For the purposes of subsection (1), section 209 of the **Australian Consumer Law and Fair Trading Act 2012** applies as if a reference in that section to any section of the **Australian Consumer Law and Fair Trading Act 2012** were a reference to section 125 of that Act (as applied by subsection (1)).
- (3) For the purposes of subsection (1)—
 - (a) section 210 of the **Australian Consumer Law and Fair Trading Act 2012** applies as if a reference in that section to Part 3.1 or Part 6.3 of the **Australian Consumer Law and Fair Trading Act 2012** were a reference to this Act;
 - (b) section 212 of the **Australian Consumer Law and Fair Trading Act 2012** applies as if a reference to prescribed proceedings were a reference to—

- (i) proceedings for an offence against a provision of this Act; or
- (ii) proceedings on an application for an injunction under section 201, 202, 203, 205 or 206 of the **Australian Consumer Law and Fair Trading Act 2012** (as applied by subsection (1)) against a person alleged to have contravened a provision of this Act; or
- (iii) proceedings on an application for an order under section 216, or for damages under section 217, of the **Australian Consumer Law and Fair Trading Act 2012** (as applied by subsection (1)).

(4) In this section—

this Act includes the regulations.

S. 48A(4)
inserted by
No. 12/2015
s. 21(Sch.1
item 9).

48B Infringement notices

S. 48B
inserted by
No. 63/2010
s. 66.

- (1) An authorised officer may serve an infringement notice on any person who the officer has reason to believe has committed an offence against this Act or the regulations that is prescribed for the purposes of this subsection.
- (2) An offence referred to in subsection (1) for which an infringement notice may be served is an infringement offence within the meaning of the **Infringements Act 2006**.
- (3) The infringement penalty for an offence prescribed for the purposes of subsection (1) is the prescribed infringement penalty.

(4) In this section *authorised officer* means—

S. 48B(4)(a)
amended by
No. 21/2012
s. 239(Sch. 6
item 40.2).

(a) a person appointed under section 142 of the
**Australian Consumer Law and Fair
Trading Act 2012;**

S. 48B(4)(b)
substituted by
No. 37/2014
s. 10(Sch.
item 148.2).

(b) a police officer;

(c) a person authorised in writing by the
Director of Consumer Affairs Victoria.

Part 3—Savings and transitional provisions

Pt 3 (Heading)
amended by
No. 63/2010
s. 60(1).

Pt 3
(Heading and
ss 26–28)
repealed by
No. 7332
s. 4(Sch. 2),
new Pt 3
(Heading and
s. 37)
inserted by
No. 44/2002
s. 31.

Division 1—Miscellaneous

Pt 3 Div. 1
(Heading)
inserted by
No. 14/2019
s. 25.

49 Application of amendment to section 32— Agriculture Legislation (Amendments and Repeals) Act 2002

S. 37
re-numbered
as s. 49 by
No. 41/2003
s. 5(2).

Despite the commencement of section 30 of the
**Agriculture Legislation (Amendments and
Repeals) Act 2002**, section 32, as in force
immediately before that commencement,
continues to apply to any contract for the sale of
land entered into before that commencement.

50 Transitional provision—Purchaser may deduct growth areas infrastructure contribution from purchase price

S. 50
inserted by
No. 23/2010
s. 18.

- (1) This section applies to a contract for the sale of
land in respect of which there is a GAIC recording
(within the meaning of Part 9B of the **Planning
and Environment Act 1987**) entered into on or
after the relevant day for that land (within the
meaning of that Part) and before 1 December
2009 if—

- (a) the land is to be transferred after the commencement of section 9 of the **Planning and Environment Amendment (Growth Areas Infrastructure Contribution) Act 2010**; and
 - (b) a growth areas infrastructure contribution is to be imposed in respect of the transfer; and
 - (c) the contract contains a term requiring the vendor to pay any growth areas infrastructure contribution that may be imposed in respect of the transfer.
- (2) The purchaser under the contract for the sale of the land, on the settlement of the contract, may deduct from the purchase price the amount of the growth areas infrastructure contribution that the purchaser is liable to pay in respect of the transfer of the land at the time of the settlement.
- (3) The purchaser may deduct an amount from the purchase price despite any term of the contract that is inconsistent with the deduction of such an amount.
- (4) In this section *settlement* in relation to a contract for the sale of land, means the time at which the purchaser becomes entitled to possession or to the receipt of rents and profits.

Note

Under Part 9B of the **Planning and Environment Act 1987**, the vendor, before settlement of a contract for the sale of land to which this section applies, may apply to the Growth Areas Infrastructure Contribution Hardship Relief Board established under that Part for relief for the purchaser from any liability to pay a growth areas infrastructure contribution to be imposed in respect of the transfer of the land. If this relief is provided, then at the time of settlement the amount of the contribution that the purchaser is liable to pay may have been partly or wholly reduced or the purchaser may have been exempted from paying the whole of the contribution. In that case the purchaser will only have the right to deduct the amount of

the contribution remaining to be paid (if any) at the time of settlement.

51 Amendment to section 9AA—Consumer Affairs Legislation Amendment (Reform) Act 2010

S. 51
inserted by
No. 63/2010
s. 60(2) (as
amended by
No. 29/2011
s. 3(Sch. 1
item 17.2)).

Despite the commencement of section 57 of the **Consumer Affairs Legislation Amendment (Reform) Act 2010**, section 9AA of this Act as in force immediately before that commencement continues to apply—

- (a) in respect of any deposit moneys paid into a special purpose account established under section 9AA;
- (b) for the purposes of the reference to section 9AA in section 9AE(1) in respect of a relevant contract of sale that was signed before that commencement.

52 Substitution of Division 2 of Part II—Sale of Land Amendment Act 2014

S. 52
inserted by
No. 33/2014
s. 6.

- (1) In this section—

Amending Act means the **Sale of Land Amendment Act 2014**;

commencement day means the day on which section 4 of the Amending Act comes into operation;

old section 32 means section 32 as in force immediately before the commencement day.

- (2) Subject to subsection (4), old section 32 (other than subsection (1)(b)) continues to apply to a vendor in respect of the sale of land on and after the commencement day if—
- (a) before the commencement day, a statement or statements under old section 32 have been prepared and the vendor has signed that statement or statements; and

- (b) on and after the commencement day that land remains for sale.
- (3) If subsection (2) applies to a vendor and the vendor, on or after the commencement day, is required to amend or update the statement or statements prepared under old section 32, the vendor may amend or update the statement or statements in accordance with old section 32.
- (4) If land offered for sale before the commencement day is withdrawn from sale and the vendor again offers the same land for sale on or after the commencement day, the vendor must comply with Divisions 2 and 2A of Part II.
- (5) If subsection (2) applies to a vendor, on and after the commencement day, the vendor is not required to comply with Division 2A of Part II.

Pt 3 Div. 2
(Heading and
ss 53, 54)
inserted by
No. 14/2019
s. 26.

Division 2—Sale of Land Amendment Act 2019

S. 53
inserted by
No. 14/2019
s. 26.

53 Definition

In this Division—

2019 Act means the **Sale of Land Amendment Act 2019**.

S. 54
inserted by
No. 14/2019
s. 26.

54 Residential off-the-plan contracts and sunset clauses

- (1) On and after the commencement of section 12(1) of the 2019 Act, the amendments made to this Act by that subsection apply to a residential off-the-plan contract entered into before that commencement and in force immediately before that commencement.

(2) Despite subsection (1), the amendment of this Act by section 12(1) of the 2019 Act does not apply to any proceeding concerning the effect or operation of a sunset clause in a residential off-the-plan contract which is commenced before the commencement of that subsection.

(3) On and after the commencement of section 12(2) and (3) of the 2019 Act, the amendments made to this Act by those subsections apply to a residential off-the-plan contract entered into before that commencement and in force immediately before that commencement.

S. 54(3)
inserted by
No. 14/2019
s. 27.

(4) Despite subsection (3), the amendment of this Act by section 12(2) and (3) of the 2019 Act does not apply to any proceeding concerning the effect or operation of a sunset clause in a residential off-the-plan contract which is commenced before the commencement of those subsections.

S. 54(4)
inserted by
No. 14/2019
s. 27.

55 Residential terms contracts

S. 55
inserted by
No. 14/2019
s. 28.

(1) In this section—

old residential terms contract means a terms contract for the sale of any residential land entered into before the commencement of section 20 of the 2019 Act and in force immediately before that commencement, that would, if it were entered into on or after that commencement, be a terms contract to which sections 29EA to 29EC apply.

(2) Despite the commencement of section 20 of the 2019 Act, the amendments made to this Act by sections 19, 20 and 21 of the 2019 Act do not apply to an old residential terms contract.

(3) A purchaser under an old residential terms contract may apply to a court or to VCAT to terminate the contract.

- (4) In any proceeding on an application under subsection (3), the court or VCAT may order that the contract is terminated.
- (5) The court or VCAT must not make an order under subsection (4) unless the court or VCAT is satisfied that—
 - (a) at the time the contract was entered into, there was a reasonable prospect that the purchaser would not be able to—
 - (i) make or, at any time, continue to make the payments required under the contract; or
 - (ii) obtain, on reasonable terms, the finance necessary to complete the contract; or
 - (b) the purchaser no longer occupies the land purchased under the contract because the purchaser could not afford the payments required under the contract.
- (6) In addition to subsection (5), the court or VCAT must not make an order under subsection (4) unless the court or VCAT is satisfied that it is just and equitable for the contract to be terminated.
- (7) In addition to an order made under subsection (4), in any proceeding on an application under subsection (3), the court or VCAT may make an order providing for all or any of the following—
 - (a) that the purchaser is relieved of any liability under the contract, including any liability for breach of any term or condition of the contract;
 - (b) that the vendor must repay to the purchaser the whole or any part of the payments made by the purchaser under the contract, except for a sum that represents fair market rent for any period for which the purchaser was—

- (i) in actual possession of the land; or
 - (ii) entitled to the receipt of rents and profits of the land.
- (8) The court or VCAT must not make an order under subsection (7) if the court or VCAT is satisfied that the order—
 - (a) would result in undue financial hardship for the vendor; or
 - (b) would otherwise not be just and equitable taking into account—
 - (i) all the circumstances of the matter; and
 - (ii) the nature and extent of any other person's or body's interest in the land.

56 Rent-to-buy arrangements

**S. 56
inserted by
No. 14/2019
s. 28.**

- (1) In this section—
 - old rent-to-buy arrangement* means an arrangement entered into before the commencement of section 22 of the 2019 Act and in force immediately before that commencement, that would, if it were entered into on or after that commencement, be a rent-to-buy arrangement to which Division 5 of Part I applies.
- (2) Despite the commencement of section 22 of the 2019 Act, Division 5 of Part I as inserted by that section does not apply to an old rent-to-buy arrangement.
- (3) A purchaser under an old rent-to-buy arrangement may apply to a court or to VCAT to terminate any contract that is part of the arrangement.

- (4) In any proceeding on an application under subsection (3), the court or VCAT may order that any contract that is part of the arrangement is terminated.
- (5) The court or VCAT must not make an order under subsection (4) unless the court or VCAT is satisfied that—
 - (a) at the time the contract was entered into, there was a reasonable prospect that the purchaser would not be able to—
 - (i) make or, at any time, continue to make the payments required under the contract; or
 - (ii) obtain, on reasonable terms, the finance necessary to complete the contract; or
 - (b) the purchaser no longer occupies the land purchased under the contract because the purchaser could not afford the payments required under the contract.
- (6) In addition to subsection (5), the court or VCAT must not make an order under subsection (4) unless the court or VCAT is satisfied that it is just and equitable for the contract to be terminated.
- (7) In addition to an order made under subsection (4), in any proceeding on an application under subsection (3), the court or VCAT may make an order providing for all or any of the following—
 - (a) that the purchaser is relieved of any liability under the contract, including any liability for breach of any term or condition of the contract;
 - (b) that the vendor must repay to the purchaser the whole or any part of the payments made by the purchaser under the contract, except for a sum that represents fair market rent for

any period for which the purchaser was in possession of the land.

- (8) The court or VCAT must not make an order under subsection (7) if the court or VCAT is satisfied that the order—
- (a) would result in undue financial hardship for the vendor; or
 - (b) would otherwise not be just and equitable taking into account—
 - (i) all the circumstances of the matter; and
 - (ii) the nature and extent of any other person's or body's interest in the land.

57 Options to purchase

Despite the commencement of section 22 of the 2019 Act, Division 6 of Part I as inserted by that section does not apply to any money paid in respect of an option to purchase land under a land banking scheme entered into before that commencement.

S. 57
inserted by
No. 14/2019
s. 28.

58 Apportionment of amounts under contracts of sale of land

- (1) Section 10G does not apply to a contract of sale of land entered into before 1 January 2024.
- (2) Section 10H does not apply to any of the following—
 - (a) a contract of sale of land entered into before 1 January 2024;
 - (b) an option to enter into a contract of sale of land granted before 1 January 2024;

S. 58
inserted by
No. 38/2023
s. 16A.

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- (c) a contract of sale of land entered into on or after 1 January 2024 under the exercise of an option that was granted before 1 January 2024.

Schedules

Schedule 1—Particulars of mortgage

Particulars to be Supplied When Land Sold Subject to a Mortgage.

- (a) The amount secured by the mortgage is
- (b) The mortgage ¹ *does not provide for further advances by the mortgagee.*
¹ provides for further advances as follows:
²
- (c) The rate of interest presently payable under the mortgage is
- (d) Subject to compliance with the terms and conditions of the mortgage the amount secured by the mortgage is to be repaid by the day of 20 .;
- (e) Instalments under the mortgage must be made as follows: ³
Amount at intervals.
- (f) The vendor is ¹ *not in default under the mortgage.*
¹ in default under the mortgage in the following respects:
- (g) At the date of giving these particulars, the amount required to discharge the mortgage is;
- (h) The mortgagee's name and address are as follows:
Name:
Address:
- (i) (to be completed if the contract is a terms contract and the consideration is to be satisfied in part by the purchaser assuming the obligations of the mortgagor)—

Section 6.
Sch. 1
(Heading)
substituted by
No. 42/1989
s. 4(e).

Sch. 1(d)
substituted by
No. 7052
s. 2(k)(i),
amended by
No. 6/2008
s. 35.

Sch. 1(e)
substituted by
No. 7052
s. 2(k)(i).

Sch. 1(g)
inserted by
No. 42/1989
s. 4(f).

Sch. 1(h)
inserted by
No. 42/1989
s. 4(f).

Sch. 1(i)
inserted by
No. 42/1989
s. 4(f).

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the mortgagee—

¹ has consented to the purchaser assuming the mortgagor's obligations under the mortgage—

¹ has not consented to the purchaser assuming the mortgagor's obligations under the mortgage.

⁴

**Footnote
amended by
No. 7052
s. 2(k)(ii).**

¹ As the case requires.

² Insert summary of relevant provisions.

³ Not required if mortgage does not provide for repayment by instalments.

⁴ Give details of defaults.

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No. 6975 of 1962
Schedule 2—Details of cost of vendor finance

Schedule 2—Details of cost of vendor finance

Sch. 2
inserted by
No. 42/1989
s. 5(2).

Deposit payable	\$
Balance of purchase money including total interest but less deposit	\$
Final payment when periodical payments completed	\$
Purchase price excluding total interest and deposit if shown in contract	\$
Lowest price at which land may be bought for cash where contract does not show purchase price less interest and deposit	\$
Number of repayments	No.
Amount of each repayment	\$ *5
When repayments due	Date
Annual percentage interest rate	% *1
Whether variable	Yes/No *2
Total interest payable	\$
Charge for late payment	\$

NOTES:

- *1. The annual percentage rate is the percentage rate which, as applied to the daily unpaid balance of purchase money excluding interest (if shown in the contract) or, if that is not shown in the contract, the lowest cash price at which the land might be bought, will yield the amount equal to the total interest.
 - *2. Delete where inapplicable.
 - 3. If the interest rate is variable the amount in the Schedule should be calculated as if the rate did not vary.
 - 4. Amounts in the Schedule must be calculated as if all payments were made as and when they fall due, but the penalty for late payment must still be shown.
 - *5. If the payments vary in amount, specify the amount of each repayment.
-

Endnotes

1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

The **Sale of Land Act 1962** was assented to on 18 December 1962 and came into operation as follows:

Part 2 (sections 23–25) on 1 March 1963: Government Gazette 13 February 1963 page 263; sections 9, 27, 28 on 1 March 1963: Government Gazette 20 February 1963 page 307; rest of Act on 1 June 1963: Government Gazette 20 February 1963 page 307.

INTERPRETATION OF LEGISLATION ACT 1984 (ILA)

Style changes

Section 54A of the ILA authorises the making of the style changes set out in Schedule 1 to that Act.

References to ILA s. 39B

Sidenotes which cite ILA s. 39B refer to section 39B of the ILA which provides that where an undivided section or clause of a Schedule is amended by the insertion of one or more subsections or subclauses, the original section or clause becomes subsection or subclause (1) and is amended by the insertion of the expression "(1)" at the beginning of the original section or clause.

Interpretation

As from 1 January 2001, amendments to section 36 of the ILA have the following effects:

- **Headings**

All headings included in an Act which is passed on or after 1 January 2001 form part of that Act. Any heading inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. This includes headings to Parts, Divisions or Subdivisions in a Schedule; sections; clauses; items; tables; columns; examples; diagrams; notes or forms. See section 36(1A)(2A).

- **Examples, diagrams or notes**

All examples, diagrams or notes included in an Act which is passed on or after 1 January 2001 form part of that Act. Any examples, diagrams or notes inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, form part of that Act. See section 36(3A).

- **Punctuation**

All punctuation included in an Act which is passed on or after 1 January 2001 forms part of that Act. Any punctuation inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. See section 36(3B).

- **Provision numbers**

All provision numbers included in an Act form part of that Act, whether inserted in the Act before, on or after 1 January 2001. Provision numbers include section numbers, subsection numbers, paragraphs and subparagraphs. See section 36(3C).

- **Location of "legislative items"**

A "legislative item" is a penalty, an example or a note. As from 13 October 2004, a legislative item relating to a provision of an Act is taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision. For example, if a penalty at the foot of a provision is followed by a note, both of these legislative items will be regarded as being at the foot of that provision. See section 36B.

- **Other material**

Any explanatory memorandum, table of provisions, endnotes, index and other material printed after the Endnotes does not form part of an Act. See section 36(3)(3D)(3E).

Sale of Land Act 1962
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Endnotes

2 Table of Amendments

This publication incorporates amendments made to the **Sale of Land Act 1962** by Acts and subordinate instruments.

Sale of Land (Amendment) Act 1963, No. 7052/1963

Assent Date: 26.11.63
Commencement Date: 26.11.63
Current State: All of Act in operation

Public Lands and Works Act 1964, No. 7228/1964

Assent Date: 15.12.64
Commencement Date: 15.3.65: Government Gazette 11.3.65 p. 557
Current State: All of Act in operation

Sale of Land Act 1965, No. 7272/1965

Assent Date: 1.6.65
Commencement Date: 1.9.65: Government Gazette 21.7.65 p. 2314
Current State: All of Act in operation

Statute Law Revision Act 1965, No. 7332/1965

Assent Date: 14.12.65
Commencement Date: 14.12.65
Current State: All of Act in operation

Sale of Land (Amendment) Act 1969, No. 7898/1969

Assent Date: 9.12.69
Commencement Date: 1.3.70: Government Gazette 19.12.69 p. 4134
Current State: All of Act in operation

Local Government (Further Amendment) Act 1971, No. 8149/1971

Assent Date: 4.5.71
Commencement Date: S. 25(1) on 1.10.72: Government Gazette 27.9.72 p. 3198
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Cluster Titles Act 1974, No. 8661/1974

Assent Date: 20.12.74
Commencement Date: Ss 40, 41 on 15.8.75: Government Gazette 13.8.75 p. 2926; rest of Act on 1.10.75: Government Gazette 10.9.75 p. 3253
Current State: All of Act in operation

Cluster Titles (Amendment) Act 1978, No. 9128/1978

Assent Date: 23.5.78
Commencement Date: 1.7.78: Government Gazette 14.6.78 p. 1644
Current State: All of Act in operation

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Sale of Land (Deposits) Act 1980, No. 9423/1980

Assent Date: 20.5.80
Commencement Date: 1.8.80: Government Gazette 2.7.80 p. 2256
Current State: All of Act in operation

Statute Law Revision Act 1980, No. 9427/1980

Assent Date: 27.5.80
Commencement Date: 27.5.80: subject to s. 6(2)
Current State: All of Act in operation

Estate Agents Act 1980, No. 9428/1980

Assent Date: 27.5.80
Commencement Date: S. 3(1)(Sch.) on 30.6.81: Government Gazette 17.6.81 p. 1902
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land (Deposits Amendment) Act 1980, No. 9471/1980

Assent Date: 16.12.80
Commencement Date: 22.12.80: Government Gazette 17.12.80 p. 4271
Current State: All of Act in operation

Statute Law Revision Act 1981, No. 9549/1981

Assent Date: 19.5.81
Commencement Date: 19.5.81: subject to s. 2(2)
Current State: All of Act in operation

Sale of Land (Deposits) Act 1981, No. 9688/1981

Assent Date: 5.1.82
Commencement Date: 5.1.82
Current State: All of Act in operation

Building Control Act 1981, No. 9720/1981

Assent Date: 12.1.82
Commencement Date: S. 3(2)(Sch. item 90) on 2.8.82: Government Gazette 28.4.82 p. 1174
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land (Amendment) Act 1982, No. 9858/1982

Assent Date: 5.1.83
Commencement Date: 2.5.83: Government Gazette 8.4.83 p. 753
Current State: All of Act in operation

Statute Law Revision Act 1984, No. 10087/1984

Assent Date: 22.5.84
Commencement Date: 22.5.84: s. 3(2)
Current State: All of Act in operation

Sale of Land (Allotments) Act 1985, No. 10216/1985

Assent Date: 3.12.85
Commencement Date: 1.1.86: Government Gazette 18.12.85 p. 4697
Current State: All of Act in operation

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No. 6975 of 1962
Endnotes

Supreme Court Act 1986, No. 110/1986

Assent Date: 16.12.86
Commencement Date: 1.1.87: s. 2
Current State: All of Act in operation

Land Acquisition and Compensation Act 1986, No. 121/1986

Assent Date: 23.12.86
Commencement Date: 29.11.87: Government Gazette 25.11.87 p. 3224
Current State: All of Act in operation

House Contracts Guarantee Act 1987, No. 44/1987

Assent Date: 19.5.87
Commencement Date: S. 36 on 1.5.88: Government Gazette 30.3.88 p. 752
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Planning and Environment Act 1987, No. 45/1987

Assent Date: 27.5.87
Commencement Date: S. 205(Sch. item 123) on 16.2.88: Government Gazette 10.2.88 p. 218
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Subdivision Act 1988, No. 53/1988 (as amended by Nos 18/1989, 47/1989)

Assent Date: 31.5.88
Commencement Date: 30.10.89: Government Gazette 4.10.89 p. 2532
Current State: All of Act in operation

Transfer of Land (Computer Register) Act 1989, No. 18/1989

Assent Date: 16.5.89
Commencement Date: 3.2.92: Government Gazette 18.12.91 p. 3488
Current State: All of Act in operation

Sale of Land (Amendment) Act 1989, No. 42/1989

Assent Date: 6.6.89
Commencement Date: 30.10.89: Government Gazette 25.10.89 p. 2698
Current State: All of Act in operation

Subdivision (Miscellaneous Amendments) Act 1991, No. 48/1991

Assent Date: 25.6.91
Commencement Date: Ss 38(2)(f)(3), 56(2)(3), 65 on 30.10.89: s. 2(2); rest of Act (*except* ss 50, 53(5), 57) on 25.6.91: s. 2(4); s. 53(5) on 1.10.92: s. 2(1); ss 50, 57 on 3.2.92: i.e. same day as Act No. 18/1989
Current State: All of Act in operation

Agricultural and Veterinary Chemicals (Control of Use) Act 1992, No. 46/1992
(as amended by No. 73/1994)

Assent Date: 23.6.92
Commencement Date: S. 78(3) on 20.12.95: Government Gazette 14.12.95 p. 3489
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land Act 1962
No. 6975 of 1962
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Subdivision (Amendment) Act 1993, No. 57/1993

Assent Date: 8.6.93
Commencement Date: S. 17(4) on 30.10.89: s. 2(1); rest of Act on 8.6.93:
s. 2(2)
Current State: All of Act in operation

Building Act 1993, No. 126/1993

Assent Date: 14.12.93
Commencement Date: S. 264(Sch. 5 item 19) on 1.7.94: Special Gazette
(No. 42) 1.7.94 p. 1
Current State: This information relates only to the provision/s
amending the **Sale of Land Act 1962**

Subordinate Legislation Act 1994, No. 104/1994

Assent Date: 13.12.94
Commencement Date: 1.1.95: s. 2
Current State: All of Act in operation

Constitution (Court of Appeal) Act 1994, No. 109/1994

Assent Date: 20.12.94
Commencement Date: Pt 1 (ss 1, 2) on 20.12.94: s. 2(1); rest of Act on 7.6.95:
Special Gazette (No. 41) 23.5.95 p. 1
Current State: All of Act in operation

Water Industry Act 1994, No. 121/1994

Assent Date: 20.12.94
Commencement Date: Ss 1, 2 on 20.12.94: s. 2(1); rest of Act on 1.1.95:
Special Gazette (No. 105) 23.12.94 p. 1
Current State: All of Act in operation

Legal Practice Act 1996, No. 35/1996

Assent Date: 6.11.96
Commencement Date: S. 453(Sch. 1 items 73.1–73.11) on 1.1.97: s. 2(3)
Current State: This information relates only to the provision/s
amending the **Sale of Land Act 1962**

Building (Further Amendment) Act 1997, No. 34/1997

Assent Date: 3.6.97
Commencement Date: S. 31 on 1.8.97: Special Gazette (No. 84) 29.7.97 p. 1.
Current State: This information relates only to the provision/s
amending the **Sale of Land Act 1962**

Transfer of Land (Single Register) Act 1998, No. 85/1998

Assent Date: 17.11.98
Commencement Date: S. 24(Sch. item 53) on 1.1.99: s. 2(3)
Current State: This information relates only to the provision/s
amending the **Sale of Land Act 1962**

Fair Trading (Inspectors Powers and Other Amendments) Act 1999, No. 17/1999

Assent Date: 18.5.99
Commencement Date: S. 45 on 1.9.99: Government Gazette 19.8.99 p. 1901
Current State: This information relates only to the provision/s
amending the **Sale of Land Act 1962**

Sale of Land Act 1962
No. 6975 of 1962
Endnotes

Statute Law Revision Act 2000, No. 74/2000

Assent Date: 21.11.00
Commencement Date: S. 3(Sch. 1 item 112) on 22.11.00: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Statute Law Amendment (Authorised Deposit-taking Institutions) Act 2001, No. 11/2001

Assent Date: 8.5.01
Commencement Date: S. 3(Sch. item 67) on 1.6.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

House Contracts Guarantee (HIH) Act 2001, No. 26/2001

Assent Date: 7.6.01
Commencement Date: S. 17 on 8.6.01: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Statute Law Amendment (Relationships) Act 2001, No. 27/2001

Assent Date: 12.6.01
Commencement Date: S. 3(Sch. 1 item 12) on 28.6.01: Government Gazette 28.6.01 p. 1428
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Statute Law (Further Revision) Act 2002, No. 11/2002

Assent Date: 23.4.02
Commencement Date: S. 3(Sch. 1 item 58) on 24.4.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Agriculture Legislation (Amendments and Repeals) Act 2002, No. 44/2002

Assent Date: 22.10.02
Commencement Date: Ss 30, 31 on 20.3.03: Government Gazette 13.3.03 p. 418
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Estate Agents and Sale of Land Acts (Amendment) Act 2003, No. 41/2003

Assent Date: 11.6.03
Commencement Date: Ss 3–5 on 1.2.04: Government Gazette 29.1.04 p. 179
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Fair Trading (Enhanced Compliance) Act 2004, No. 103/2004

Assent Date: 21.12.04
Commencement Date: Ss 68–71 on 22.12.04: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land Act 1962
No. 6975 of 1962
Endnotes

Statute Law Revision Act 2005, No. 10/2005

Assent Date: 27.4.05
Commencement Date: S. 3(Sch. 1 item 18) on 28.4.05: s. 2
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Legal Profession (Consequential Amendments) Act 2005, No. 18/2005

Assent Date: 24.5.05
Commencement Date: S. 18(Sch. 1 item 94) on 12.12.05: Government Gazette 1.12.05 p. 2781
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Owners Corporations Act 2006, No. 69/2006

Assent Date: 19.9.06
Commencement Date: Ss 217–219 on 31.12.07: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Conveyancers Act 2006, No. 75/2006 (as amended by No. 17/2007)

Assent Date: 10.10.06
Commencement Date: S. 192(Sch. 2 item 5) on 1.7.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Water (Governance) Act 2006, No. 85/2006

Assent Date: 17.10.06
Commencement Date: S. 173(Sch. 1 item 12) on 1.7.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Fair Trading and Consumer Acts Amendment Act 2007, No. 17/2007

Assent Date: 29.5.07
Commencement Date: S. 36(Sch. item 13) on 30.5.07: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Fair Trading and Consumer Acts Further Amendment Act 2008, No. 2/2008

Assent Date: 11.2.08
Commencement Date: S. 60(Sch. item 12) on 12.2.08: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Consumer Credit (Victoria) and Other Acts Amendment Act 2008, No. 6/2008

Assent Date: 18.3.08
Commencement Date: Ss 29–35 on 31.10.08: Government Gazette 30.10.08 p. 2530
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

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No. 6975 of 1962
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Relationships Act 2008, No. 12/2008

Assent Date: 15.4.08
Commencement Date: S. 73(1)(Sch. 1 item 54) on 1.12.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Criminal Procedure Amendment (Consequential and Transitional Provisions) Act 2009, No. 68/2009

Assent Date: 24.11.09
Commencement Date: S. 97(Sch. item 107) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Consumer Affairs Legislation Amendment Act 2010, No. 1/2010

Assent Date: 9.2.10
Commencement Date: S. 75 on 1.3.10: Government Gazette 25.2.10 p. 351
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Planning and Environment Amendment (Growth Areas Infrastructure Contribution) Act 2010, No. 23/2010

Assent Date: 1.6.10
Commencement Date: Ss 17, 18 on 1.7.10: Special Gazette (No. 242) 25.6.10 p. 1
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Climate Change Act 2010, No. 54/2010

Assent Date: 14.9.10
Commencement Date: S. 80 on 1.7.11: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Consumer Affairs Legislation Amendment (Reform) Act 2010, No. 63/2010
(as amended by Nos 29/2011, 56/2012)

Assent Date: 28.9.10
Commencement Date: Ss 58, 66 on 1.11.10: Government Gazette 14.10.10 p. 2404; ss 57(1)(3)–(5), 59, 60 on 1.3.12: Special Gazette (No. 423) 21.12.11 p. 1; s. 57(2) on 1.12.12: s. 2(4)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Fair Trading Amendment (Australian Consumer Law) Act 2010, No. 72/2010

Assent Date: 19.10.10
Commencement Date: S. 48(Sch. item 21) on 1.1.11: Special Gazette (No. 502) 20.12.10 p. 1
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land Act 1962
No. 6975 of 1962
Endnotes

Planning and Environment Amendment (Growth Areas Infrastructure Contribution) Act 2011, No. 31/2011

Assent Date: 29.6.11
Commencement Date: S. 29 on 30.6.11: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Australian Consumer Law and Fair Trading Act 2012, No. 21/2012

Assent Date: 8.5.12
Commencement Date: S. 239(Sch. 6 item 40) on 1.7.12: Special Gazette (No. 214) 28.6.12 p. 1
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Police and Emergency Management Legislation Amendment Act 2012, No. 35/2012

Assent Date: 13.6.12
Commencement Date: S. 10 on 31.7.13: s. 2(5)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Residential Tenancies and Other Consumer Acts Amendment Act 2012, No. 56/2012

Assent Date: 18.9.12
Commencement Date: S. 27 on 1.12.12: s. 2(4)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Legal Profession Uniform Law Application Act 2014, No. 17/2014

Assent Date: 25.3.14
Commencement Date: S. 160(Sch. 2 item 87) on 1.7.15: Special Gazette (No. 151) 16.6.15 p. 1
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land Amendment Act 2014, No. 33/2014

Assent Date: 13.5.14
Commencement Date: Ss 3–6 on 1.10.14: Special Gazette (No. 282) 26.8.14 p. 1
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Victoria Police Amendment (Consequential and Other Matters) Act 2014, No. 37/2014

Assent Date: 3.6.14
Commencement Date: S. 10(Sch. item 148) on 1.7.14: Special Gazette (No. 200) 24.6.14 p. 2
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

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No. 6975 of 1962
Endnotes

Consumer Affairs Legislation Amendment Act 2014, No. 50/2014

Assent Date: 12.8.14
Commencement Date: S. 28 on 13.8.14: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Veterans and Other Acts Amendment Act 2015, No. 12/2015

Assent Date: 21.4.15
Commencement Date: Ss 7, 21(Sch. 1 item 9) on 22.4.15: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Consumer Acts and Other Acts Amendment Act 2016, No. 23/2016

Assent Date: 10.5.16
Commencement Date: Ss 34, 35 on 1.6.16: Special Gazette (No. 162) 24.5.16 p. 1
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Consumer Acts Amendment Act 2017, No. 13/2017

Assent Date: 10.5.17
Commencement Date: Ss 19–21 on 11.5.17: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Building Amendment (Registration of Building Trades and Other Matters) Act 2018, No. 46/2018

Assent Date: 25.9.18
Commencement Date: S. 78 on 26.9.18: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land Amendment Act 2019, No. 14/2019

Assent Date: 4.6.19
Commencement Date: Ss 4(1), 12(1), 25, 26 on 23.8.18: s. 2(2); ss 5–11, 12(2)(3), 27 on 5.6.19: s. 2(3); ss 4(2), 13–24, 28 on 1.3.20: s. 2(5)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Residential Tenancies, Housing and Social Services Regulation Amendment (Administration and Other Matters) Act 2022, No. 40/2022

Assent Date: 6.9.22
Commencement Date: S. 58 on 7.9.22: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Building Legislation Amendment Act 2023, No. 11/2023

Assent Date: 6.6.23
Commencement Date: S. 56 on 1.2.24: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Sale of Land Act 1962
No. 6975 of 1962
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State Taxation Acts and Other Acts Amendment Act 2023, No. 38/2023

Assent Date: 12.12.23
Commencement Date: Ss 16, 16A on 1.1.24: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Regulatory Legislation Amendment (Reform) Act 2024, No. 6/2024

Assent Date: 5.3.24
Commencement Date: S. 106 on 6.3.24: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Commercial and Industrial Property Tax Reform Act 2024, No. 16/2024

Assent Date: 21.5.24
Commencement Date: Ss 62, 63 on 1.7.24: s. 2
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

State Taxation Further Amendment Act 2024, No. 50/2024

Assent Date: 3.12.24
Commencement Date: Ss 46–48 on 4.12.24: s. 2(1)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

Consumer and Planning Legislation Amendment (Housing Statement Reform) Act 2025, No. 6/2025

Assent Date: 18.3.25
Commencement Date: S. 117 on 25.11.25: s. 2(2)
Current State: This information relates only to the provision/s amending the **Sale of Land Act 1962**

3 Explanatory details

¹ S. 23 def. of *commission*: See section 4 of the **Estate Agents Act 1980**, No. 9428.

² Pt 2 Div. 2 (Heading and ss 32, 33): Pt 2 Div. 2 (Heading and ss 32, 33) amended by Nos 9858 s. 3, 10216 s. 8, 121/1986 s. 112, 44/1987 s. 36(1), 53/1988 s. 45(Sch. 2 items 67–69) (as amended by No. 47/1989 ss 8(1)(e), 22(d)), 18/1989 s. 13(Sch. 2 item 76(f)), 42/1989 ss 4(d), 5(1)(b)–(g), 48/1991 s. 54, 46/1992 s. 78(3) (as amended by No. 73/1994 s. 56(1)(d)), 57/1993 s. 18, 126/1993 s. 264(Sch. 5 item 19), 121/1994 s. 210(1), 35/1996 s. 453(Sch. 1 item 73.10), 34/1997 s. 31, 26/2001 s. 17, 27/2001 s. 3(Sch. 1 item 12.3), 44/2002 s. 30, 41/2003 s. 5(1), 103/2004 s. 69, 10/2005 s. 3(Sch. 1 item 18), 69/2006 s. 219, 6/2008 s. 34, 23/2010 s. 17, 54/2010 s. 80, 31/2011 s. 29, 35/2012 s. 10, substituted as Pt 2 Div. 2 (Heading and ss 32–32P) by No. 33/2014 s. 4.